

EQUALITY IN SENTENCING MITIGATION

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As guilty-plea rates have skyrocketed, sentencing has become an increasingly important part of criminal procedure. With judges often wielding significant discretion at sentencing, a key question is how judges interpret mitigation: evidence about the defendant's background or the case that supports a reduced sentence. Past empirical research—both experimental and in real-world cases—indicates that mitigation plays an important role in determining sentences. But does mitigation help everyone, or does it reinforce inequalities that frequently infect other areas of criminal procedure? Do low-income Black defendants with appointed counsel benefit from sentencing mitigation as much as wealthier White defendants with private attorneys? Do certain kinds of judges disregard mitigation, leading

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to longer sentences for those defendants unlucky enough to be assigned to their dockets?

In this Article, I present new data that shed light on these questions for the first time. I do this by leveraging two unique datasets. First, by systematically examining over 350 federal sentencing memoranda and coding them for the length of arguments devoted to various categories of mitigation (such as arguments about defendants' good character, traumatic upbringing, or history of mental or physical illness), I demonstrate that sentencing mitigation is a central predictor of sentencing outcomes. Second, by combining my hand-coded mitigation data with previously unexplored data from the U.S. Sentencing Commission, I assess the extent to which demographic characteristics—such as race, politics, and legal representation—interact with sentencing mitigation.

The results are encouraging. For the most part, I do not find evidence that race or politics have a substantial impact on the effectiveness of mitigation. In that way, mitigation may function as a sort of rising tide that lifts all boats, aiding defendants regardless of characteristics that may result in inequality in other parts of criminal procedure. And mitigation's impact appears substantial: an additional 1,000 words of mitigation about a defendant's personal circumstances predict an approximately 13 percent reduction in sentence. At the same time, mitigation is not a panacea: I find that defendants still face a large luck-of-the-draw element as individual attorneys vary strongly in the effectiveness of their presentations. Normatively, I argue that we should encourage more effective presentation of mitigation by streamlining rules about how judges may consider it, by increasing access for detained defendants, and by increasing support for attorneys who need help in presenting it.

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INTRODUCTION

On January 8, 2018, Brent Richards—a White man in his early thirties—walked into a Citizens Bank in Pittsburgh.¹ He was dressed in all black and held what appeared to be a black and silver handgun.² Walking up to the counter, Richards pointed the gun straight at the tellers, demanding that they give him the money from their drawers.³ They did, and Richards walked out of the bank with more than \$10,000 in cash.⁴ When officers later arrested him, Richards admitted that it was not his first time—he had robbed another bank more than a year earlier.⁵

Richards pleaded guilty to bank robbery and faced a significant sentence based on his U.S. Sentencing Commission Guidelines (the “Sentencing

1. See Indictment Memorandum at 1–2, *United States v. Richards*, No. 18-cr-00322 (W.D. Pa. Nov. 27, 2018); Government’s Sentencing Memorandum at 1–2, *Richards*, No. 18-cr-00322; see also Press Release, U.S. Dep’t of Just., “Happy Holidays” Bank Robber Pleads Guilty in Armed Heist of Citizens Bank in Crafton (June 26, 2019), <https://www.justice.gov/usao-wdpa/pr/happy-holidays-bank-robber-pleads-guilty-armed-heist-citizens-bank-crafton> [<https://perma.cc/YVK3-FK7Z>].

2. It turned out to be a BB gun, though the bank tellers did not know it at the time. Government’s Sentencing Memorandum, *supra* note 1, at 2; see also Indictment Memorandum, *supra* note 1, at 2.

3. See Government’s Sentencing Memorandum, *supra* note 1, at 2.

4. *Id.*

5. See *id.* at 1–2.

Guidelines” or “Guidelines”) range: 84 to 105 months in federal prison.⁶ The prosecutor thought he should serve exactly that and asked for a sentence within the Guidelines range.⁷

But the federal defender representing Richards saw someone more than a bank robber. He saw a man whose entire existence had been defined and destabilized by trauma. As Richards’s attorney wrote in his sentencing memorandum, Richards’s early memories included being beaten, hiding under a bed while family members and their friends smoked crack just feet away, and helping his mother—a “professional shoplifter”—unload stolen merchandise from the family car.⁸ All this before he was a teenager.⁹ Not surprisingly, Richards himself soon had a substance use disorder, eventually using “20 bags of heroin a day.”¹⁰ He also had a range of mental illnesses, including post-traumatic stress disorder (PTSD), depression, and generalized anxiety disorder.¹¹ As his attorney argued, Richards’s crime was, at least in part, “the product of adverse childhood experiences, trauma, and life-long exposure to drugs, culminating into a diagnosis of severe opioid and cocaine use disorder.”¹² Richards’s sentencing memo contextualized how his background had pushed him toward crime, including specific details from his childhood, interviews with family, and written evaluations from medical professionals.¹³ Put simply, Richards’s memo explained that he “commits crimes to support his habit” that developed, at least in part, through factors outside his control before adolescence.¹⁴

The district judge seemed to agree. He sentenced Richards to fifty-four months in prison¹⁵—less than 60 percent of the midpoint of his Sentencing Guidelines range.¹⁶ Richards served his sentence and was released in early April 2022.¹⁷

6. *Id.* at 1–2, 4.

7. *Id.* at 3–4.

8. Defendant’s Sentencing Memorandum at 1–2, *Richards*, No. 18-cr-00322. There’s more. “When Brent was 15, he watched his best friend accidentally shoot himself in the face, killing him instantly. . . . There was so much blood it soaked through the floor and onto the ceiling of the room below.” *Id.* at 2.

9. *See id.*

10. *Id.* at 3.

11. *Id.* at 13.

12. *Id.* at 4.

13. *Id.* at 4–16. For example, the memo included a written evaluation from Dr. George Lloyd, a substance use disorder specialist, who opined that

Brent’s severe opioid and cocaine use disorder, clouded his judgment and “normal brain development, in particular the prefrontal cortex which is responsible for assessing situations, making sound decisions, controlling emotions and impulses. I believe if he was not using cocaine or recovering from its effects he would not have committed this crime.”

Id. at 10 (citation omitted) (quoting Exhibit 2, Dr. Lloyd Evaluation at 3–4, *Richards*, No. 18-cr-00322).

14. *See id.* at 4.

15. Judgment in a Criminal Case at 2, *Richards*, No. 18-cr-00322.

16. *See* Government’s Sentencing Memorandum, *supra* note 1, at 1.

17. FED. BUREAU OF PRISONS INMATE DATABASE, <https://www.bop.gov/inmateloc/> [<https://perma.cc/NP4D-ZUE6>] (last visited Sep. 3, 2025). The database maintains the release status of all individuals incarcerated with the Federal Bureau of Prisons from 1982 to the

Torrence Triplett's sentencing experience was different. In 2016, Triplett—a Black man in his late thirties—was selling relatively small quantities of cocaine to people on the streets of Denver.¹⁸ Unbeknownst to Triplett, however, local agents had obtained a wiretap for his supplier, Shedrick Wilford.¹⁹ After listening in on calls between the two, they surveilled a meeting in which Triplett bought cocaine from Wilford to later resell on the street.²⁰

Triplett was arrested and indicted for conspiracy to distribute cocaine, among other drug charges.²¹ Because Triplett was indigent, the court appointed counsel for him.²² As often happens in multi-defendant cases or other cases where the federal defender's office has a conflict of interest, Triplett was appointed a panel attorney under the Criminal Justice Act of 1964²³ (CJA) rather than an attorney from the federal defender's office.²⁴ He pleaded guilty to one count of possession with intent to distribute cocaine and faced a Sentencing Guidelines range of thirty-three to forty-one months' imprisonment.²⁵

In contrast with Richards, Triplett's sentence came and went with relatively little fanfare. Like Richards, Triplett had a troubled childhood—he grew up in a dangerous area of St. Louis, joined a gang in childhood, and developed a drug addiction that pushed him toward crime.²⁶ He experienced loss like Richards, too, when his mother died of cancer.²⁷ But unlike Richards, Triplett's sentencing memorandum did not place his crimes in the

present. *Id.* Importantly for this project, it also contains data regarding the age, race, and sex of each incarcerated person. *Id.* Demographic information about defendants mentioned here can be found in the database.

18. Plea Agreement at 6–8, *United States v. Triplett*, No. 17-cr-00138 (D. Colo. Mar. 6, 2018).

19. *Id.* at 6–7.

20. *See id.* at 7–8.

21. *See generally* Indictment, *Triplett*, No. 17-cr-00138.

22. Minute Entry for Initial Appearance, *Triplett*, No. 17-cr-00138.

23. 18 U.S.C. § 3006A.

24. *See id.*; Defendant Torrence Triplett's Sentencing Memorandum at 2, *Triplett*, No. 17-cr-00138. This is frequent in drug cases, which often have multiple defendants. Once the federal defender's office represents a single defendant in a case, it has a conflict of interest with any other defendant on the case and thus cannot represent those other defendants. *See, e.g.,* NAT'L ASS'N FOR PUB. DEF., *NAPD FORMAL ETHICS OPINION 19-1*, at 1 (2020), https://publicdefenders.us/app/uploads/2020/05/NAPD-Ethics-Opinion_19-1_FINAL.pdf [<https://perma.cc/6GF5-PYLG>] (“Conflicts of interest must be imputed among public defenders within the same firm.”). The typical response for any remaining indigent defendant is that the court then appoints a panel attorney pursuant to the Criminal Justice Act. *Defender Services*, U.S. CTS., <https://www.uscourts.gov/about-federal-courts/defender-services> [<https://perma.cc/XLH9-M7Y4>] (last visited Sep. 3, 2025) (“In those districts with a defender organization, panel attorneys are typically assigned between 30 percent and 40 percent of the CJA cases, generally those where a conflict of interest or some other factor precludes federal defender representation.”).

25. Plea Agreement, *supra* note 18, at 2; Defendant Torrence Triplett's Sentencing Memorandum, *supra* note 24, at 12.

26. Defendant Torrence Triplett's Sentencing Memorandum, *supra* note 24, at 9.

27. *Id.*

context of his upbringing, troubled life, and suffering.²⁸ Instead, it provided a terse summary of Triplett's background, focusing more on how a lengthy sentence would not benefit society.²⁹ The judge sentenced Triplett to forty-one months—more than 110 percent of the midpoint of his Sentencing Guidelines range.³⁰

That Richards's and Triplett's sentences were different is not particularly surprising. Increased use of sentencing mitigation strongly correlates with reduced sentences in real cases.³¹ In particular, the kinds of mitigation offered in Richards's case—things like his dramatically traumatic upbringing and well-supported history of mental illness—are especially powerful predictors of reduced sentences.³² And mitigation is powerful in experimental contexts too. Laypeople impose reduced sentences and ascribe reduced moral blame to defendants when there are mitigating circumstances like the presence of collateral consequences or indicators of a defendant's good character.³³

Mitigation matters, it seems. But did Richards and Triplett both have an equal opportunity at receiving the benefits of mitigation? Or does mitigation at sentencing simply reflect the same systemic inequalities and injustices that define the winners and losers at each level of the criminal justice system? Disparate outcomes—especially related to race and class—infect the system at nearly every step. Black drivers are much more likely to be stopped by police than White drivers, an effect that reduces after sunset, when profiling becomes more difficult.³⁴ Once those stops occur, Black and Hispanic drivers are more likely to be searched, arrested,³⁵ or subject to police violence.³⁶ Black people are then more likely to be arrested and charged with

28. *See id.* at 9–13.

29. *Id.*

30. Judgment in a Criminal Case at 2, *Triplett*, No. 17-cr-00138.

31. *See, e.g.*, John B. Meixner Jr., *Modern Sentencing Mitigation*, 116 NW. U. L. REV. 1395, 1453–54 (2022) (describing an empirical study indicating that presentation of mitigation is associated with reduced sentences); Paul H. Robinson, Sean E. Jackowitz & Daniel M. Bartels, *Extralegal Punishment Factors: A Study of Forgiveness, Hardship, Good Deeds, Apology, Remorse, and Other Such Discretionary Factors in Assessing Criminal Punishment*, 65 VAND. L. REV. 737, 740–42 (2012) (discussing “extralegal punishment factors” influencing sentencing).

32. Meixner, *supra* note 31, at 1446–48. Of course, it bears noting that many factors affect sentences, and there is no way to know whether mitigation explains the difference between these two particular sentences. But their differences are anecdotally illustrative of the trend in larger samples that increases in mitigation tend to predict reduced sentences, holding other factors constant. *See id.*

33. *See, e.g.*, Robinson, Jackowitz & Bartels, *supra* note 31, at 813–14.

34. *See, e.g.*, Emma Pierson et al., *A Large-Scale Analysis of Racial Disparities in Police Stops Across the United States*, 4 NATURE HUM. BEHAV. 736, 736 (2020).

35. *See, e.g.*, SUSANNAH N. TAPP & ELIZABETH J. DAVIS, U.S. DEP'T OF JUST., CONTACTS BETWEEN POLICE AND THE PUBLIC, 2020, at 8 tbl. 5 (2025), <https://bjs.ojp.gov/media/document/cbpp20.pdf> [<https://perma.cc/G7RR-NRUG>] (reporting 9.2 percent of Hispanic drivers and 6.2 percent of Black drivers were searched or arrested, compared to 3.6 percent of White drivers).

36. *Id.* at 11 (“In 2020, black and Hispanic persons were more likely than white persons to experience the threat of force or nonfatal use of force by police.”).

most offenses, including misdemeanors³⁷ and drug offenses.³⁸ Once their cases reach court, Black and Brown defendants are more likely to be detained pending trial,³⁹ more likely to be charged with serious offenses,⁴⁰ and less likely to receive a favorable plea offer.⁴¹ In the rare cases that reach trial, Black jurors are more likely to be struck by prosecutors using peremptory challenges than White jurors, biasing the jury pool.⁴² Disparate outcomes continue after the case is over: people of color are more likely than White people to be under supervision and to be incarcerated for violations of parole or supervised release,⁴³ and the algorithmic risk assessment tools often used

37. See, e.g., Megan Stevenson & Sandra Mayson, *The Scale of Misdemeanor Justice*, 98 B.U. L. REV. 731, 759–60 (2018).

38. See AM. C.L. UNION, A TALE OF TWO COUNTRIES: RACIALLY TARGETED ARRESTS IN THE ERA OF MARIJUANA REFORM 29–30 (2020); see also NAZGOL GHANDNOOSH, SENT’G PROJECT, ONE IN FIVE: DISPARITIES IN CRIME AND POLICING 8 (2023), <https://www.sentencingproject.org/reports/one-in-five-disparities-in-crime-and-policing> [<https://perma.cc/2N3F-ZBPX>].

39. For a review of the literature, see Wendy Sawyer, *How Race Impacts Who Is Detained Pretrial*, PRISON POL’Y INITIATIVE (Oct. 9, 2019), https://www.prisonpolicy.org/blog/2019/10/09/pretrial_race [<https://perma.cc/26R8-HRWE>].

40. See, e.g., Sonja B. Starr & M. Marit Rehavi, *Mandatory Sentencing and Racial Disparity: Assessing the Role of Prosecutors and the Effects of Booker*, 123 YALE L.J. 2, 28 (2013) [hereinafter Starr & Rehavi 2013] (finding significant racial disparities in how prosecutors choose to charge Black and White arrestees, controlling for factors like offense, district, age, income, and others); see M. Marit Rehavi & Sonja B. Starr, *Racial Disparity in Federal Criminal Sentences*, 122 J. POL. ECON. 1320, 1323 (2014) (identifying disparities in the types of charges brought by prosecutors against Black defendants, choosing more often to bring charges carrying “mandatory minimum” sentences).

41. See, e.g., Besiki Luka Kutateladze, Nancy R. Andiloro & Brian D. Johnson, *Opening Pandora’s Box: How Does Defendant Race Influence Plea Bargaining?*, 33 JUST. Q. 398, 414–18 (2016) (finding, through a multivariate analysis, that Black defendants charged with misdemeanor marijuana offenses were more likely to receive a plea offer with no charge reduction, and more likely to receive custodial sentence plea offers, than their White counterparts); BESIKI KUTATELADZE, WHITNEY TYMAS & MARY CROWLEY, RACE AND PROSECUTION IN MANHATTAN 6 (2014), <https://vera-institute.files.svcdcdn.com/publications/downloads/publications/race-and-prosecution-manhattan-summary.pdf?dm=1647369476> [<https://perma.cc/5EAY-KADY>] (finding that Black and Hispanic defendants in Manhattan charged with drug offenses were more likely to receive a sentence offer including jail or prison time than similarly situated White defendants in Manhattan).

42. See, e.g., Catherine M. Grosso & Barbara O’Brien, *A Stubborn Legacy: The Overwhelming Importance of Race in Jury Selection in 173 Post-Batson North Carolina Capital Trials*, 97 IOWA L. REV. 1531, 1533, 1550–53 (2012) (finding statistically significant disparities in prosecutorial strike rates against eligible Black venire members, even controlling for venire members’ personal characteristics, and noting that said disparity is significantly greater in cases with Black defendants, when examining the jury selection process in the case of each inmate on death row in North Carolina as of July 2010); Whitney DeCamp & Elise DeCamp, *It’s Still About Race: Peremptory Challenge Use on Black Prospective Jurors*, 57 J. RSCH. CRIME & DELINQ. 3, 3, 21–22 (2020) (finding that Black venire members are 4.51 times as likely to be excluded from a jury through the prosecution’s peremptory challenges as compared to White venire members, a greater degree of racial discrimination than the defense’s corresponding use of peremptory challenges to strike White venire members, analyzing data in Mississippi jury selection).

43. See, e.g., KENDRA BRADNER & VINCENT SCHIRALDI, RACIAL INEQUITIES IN NEW YORK PAROLE SUPERVISION 5–6 (2020), <https://justicelab.columbia.edu/sites/justicelab.columbia.edu/files/content/NY%20Parole%20Racial%20Inequities.pdf> [<https://perma.cc/ME7K-BR9M>] (finding that, in New York, Black people are supervised on parole at 6.8 times the rate of

to determine terms of release are also biased along race, ethnicity, and class lines.⁴⁴

There are several ways we might expect similar inequalities to translate to sentencing mitigation as well. Start with race. We know that race affects sentencing at a general level: in the federal system, Black men receive sentences nearly 20 percent longer than similarly situated White men.⁴⁵ Even when controlling for other case characteristics, such as whether charges carrying mandatory minimum sentences are filed, significant differences persist.⁴⁶

Racial bias might affect sentencing mitigation across two different dimensions. First, on the front end, race might affect how mitigation is *presented*. Defense attorneys may be less likely to seek out and present mitigation for defendants of color. And even if they do pursue mitigation equally across race, it may be harder for defense teams to identify and provide support for mitigating circumstances for defendants of color. Take mental-health related mitigation as an example: defendants of color and low-income defendants may be less likely to have a clear, documented history of treatment for mental health than White defendants with greater access to care. Second, on the back end, race might affect how mitigation is *received*. Federal judges, who are disproportionately White,⁴⁷ might take

White people and detained for alleged parole violations at a rate twelve times higher than White people, using data from the New York State Department of Corrections and Community Supervision, while also providing a helpful overview of the existing literature on racial inequities in parole across the United States); JESSE JANNETTA, JUSTIN BREAUX, HELEN HO & JEREMY PORTER, EXAMINING RACIAL AND ETHNIC DISPARITIES IN PROBATION REVOCATION: SUMMARY FINDINGS AND IMPLICATIONS FROM A MULTISITE STUDY 3–6 (2014) (finding—in a study of Dallas County, Texas; Iowa’s Sixth Judicial District; Multnomah County, Oregon; and New York City, New York—that Black probationers are revoked at higher rates than White probationers in all study sites, with revocation rates ranging from 55 percent higher than that of White probationers in Dallas County to 100 percent higher in Multnomah County).

44. See, e.g., Sandra G. Mayson, *Bias In, Bias Out*, 128 YALE L.J. 2218, 2248–68 (2019) (discussing various competing measures of disparate racial impact and bias in algorithmic risk assessment tools, including that an algorithm cannot achieve “total fairness” in all measures of disparate outcomes but instead must weigh trade-offs, and concluding that the decision to base algorithmic risk assessment tools on likelihood of arrest—as a proxy for the likelihood of crime commission—ignores the racially disparate nature of arrest rates, therefore distorting outcomes and creating inaccuracies). I note that I generally use the term “race” here to distinguish between individuals who are Black, White, or of Hispanic origin because most disparities in the criminal legal system are tracked and studied using those groupings.

45. GLENN R. SCHMITT, LOUIS REEDT & KEVIN BLACKWELL, U.S. SENTENCING COMM’N, DEMOGRAPHIC DIFFERENCES IN SENTENCING: AN UPDATE TO THE 2012 BOOKER REPORT (2017), https://www.ussc.gov/sites/default/files/pdf/research-and-publications/research-publications/2017/20171114_Demographics.pdf [https://perma.cc/UN3N-UTHN] [hereinafter U.S. SENT’G COMM’N, 2017 REPORT].

46. Starr & Rehavi 2013, *supra* note 40, at 27–31. Indeed, at least one study found that sentences tended to increase even among Black defendants based on their skin tone, with darker-skinned defendants receiving longer sentences. Jennifer L. Hochschild & Vesla Weaver, *The Skin Color Paradox and the American Racial Order*, 86 SOC. FORCES 643, 649 (2007).

47. FED. JUD. CTR., DEMOGRAPHY OF ARTICLE III JUDGES, 1789–2024, <https://www.fjc.gov/history/exhibits/graphs-and-maps/race-and-ethnicity> [https://perma.cc/GFV3-7U6E] (last visited Sep. 3, 2025).

more seriously the mitigation of defendants who look like them, reducing the impact of the mitigating circumstances of Black defendants.

The impact of an individual's mitigation may also depend on the identity of the sentencing judge. Judges in federal criminal cases are randomly assigned and vary in their sentencing practices. Some judges tend to sentence within the Guidelines; others more regularly sentence below the Guidelines.⁴⁸ These differences correlate with individual judge characteristics too—most notably politics. Across all federal criminal cases between 1999 and 2015, Republican-appointed judges, on average, sentenced defendants to terms six months longer than those appointed by Democratic presidents.⁴⁹ And that political difference interacts with other sources of inequality: it explains 65 percent of the baseline racial sentencing gap between Black and White defendants.⁵⁰ In essence, the political ideology of the sentencing judge serves as a luck-of-the-draw element that leads to disparate sentences. Might that same luck-of-the-draw affect the way that mitigation favors some defendants and not others?

Third, the identity of the defense attorney—often also a game of chance—might substantially shape the effectiveness of mitigation. At an individual level, the quality of a particular attorney might influence the extent to which mitigation is effective: some may simply be more able and willing to present extensive mitigation than others. If mitigation does influence judges' sentencing decisions, can that influence be explained by attorney quality?

At a broader level, the *type* of counsel representing a defendant may also make the benefits of mitigation unequal. In the federal system, defendants have one of three categories of counsel: (1) a federal public defender who represents indigent defendants out of a dedicated office for a particular district, (2) privately retained counsel, or (3) a “CJA panel-appointed” attorney—a private attorney who is appointed pursuant to the Criminal Justice Act to represent an indigent defendant where there is a conflict of interest or some other factor precludes federal defender representation.⁵¹ There are reasons to believe those different types of counsel may have

48. Kimberly Kaiser & Cassia Spohn, *Why Do Judges Depart?: A Review of Reasons for Judicial Departures in Federal Sentencing*, 19 CRIMINOLOGY, CRIM. JUST., L. & SOC'Y 43, 45 (2018); cf. Crystal S. Yang, *Have Interjudge Sentencing Disparities Increased in an Advisory Guidelines Regime?: Evidence from Booker*, 80 N.Y.U. L. REV. 1268, 1316–18 (2014) (finding that after the federal Sentencing Guidelines became advisory rather than mandatory, there were statistically significant increases in both below-range and above-range departures from the Guidelines' recommendations, though some judges do tend to favor within-range sentences).

49. Alma Cohen & Crystal S. Yang, *Judicial Politics and Sentencing Decisions*, 11 AM. ECON. J.: ECON. POL'Y 160, 169–70 (2019). I note here that the appointing party of a judge is, of course, an imperfect proxy for a judge's politics. See generally LEE EPSTEIN, WILLIAM M. LANDES & RICHARD A. POSNER, *THE BEHAVIOR OF FEDERAL JUDGES: A THEORETICAL AND EMPIRICAL STUDY OF RATIONAL CHOICE* (2013). To be sure, judges' political views cover a spectrum, rather than a binary measurement like the appointing party, and some judges that are appointed by Democratic presidents are more conservative than some judges appointed by Republican presidents, and vice versa. See generally *id.*

50. Cohen & Yang, *supra* note 49, at 162, 185.

51. See *supra* note 24.

different capacities to conduct and present mitigation. For example, retained counsel may provide their clients with greater resources to investigate mitigation and may have fewer external constraints (for example, an overwhelming caseload) that could limit the amount of time an attorney spends investigating mitigation. Likewise, both federal public defenders and CJA panel-appointed attorneys represent indigent defendants, but CJA panel attorneys might lack built-in advantages—such as an office culture of investigating mitigation or a mitigation research specialist—that could reduce their ability to present mitigation.

Do these various potential sources of *inequality* in mitigation—race, judicial ideology, the nature of defense counsel—affect how mitigation impacts sentences? These questions are on the fault lines of long-standing debates in American sentencing law. For much of its history, American sentencing was entirely indeterminate, with trial judges having nearly limitless discretion to choose a sentence from anywhere within a (typically very wide) statutory range.⁵² Beginning in the 1970s, prominent commentators began to critique the unfettered discretion of the system, raising concerns that it led to unfair inequality where some defendants benefited and others suffered, based on things like their race or the judge they drew in their case.⁵³ Based largely on those critiques, federal lawmakers (and many state lawmakers) created sentencing guidelines that cabined judicial discretion.⁵⁴ In the federal system, those guidelines have traditionally harshly restricted judges' ability to consider the sorts of mitigation that Richards's and Triplett's cases raised, like a traumatic upbringing or a history of drug addiction.⁵⁵

Were the architects of the Guidelines correct to be so concerned that mitigation would benefit defendants unequally? This Article provides empirical data examining that question. I draw on a hand-coded dataset of the types and quantity of mitigation in over 350 federal felony cases, analyzing the mitigation that defense attorneys present in sentencing memoranda. To assess factors potentially giving rise to inequality, I combine my hand-coded dataset with previously unavailable demographic data maintained by the U.S. Sentencing Commission (USSC or the "Commission"), such as the race, age, gender, and educational history of the defendants in my sample. I also combine the dataset with other hand-collected information that could drive inequality, such as political characteristics of the judge and characteristics of the defense attorney.

52. See, e.g., NORA DEMLEITNER, DOUGLAS BERMAN, MARC L. MILLER & RONALD F. WRIGHT, *SENTENCING LAW AND POLICY* 131 (5th ed. 2022).

53. See, e.g., MARVIN E. FRANKEL, *CRIMINAL SENTENCES: LAW WITHOUT ORDER* 10–11 (1972) (describing various potential inequalities associated with indeterminate, individualized sentencing processes).

54. DEMLEITNER ET AL., *supra* note 52, at 139 ("Because Judge Frankel provided a provocative blueprint for change, his book served as a major catalyst for modern sentencing reforms.").

55. See U.S. SENT'G GUIDELINES MANUAL §§ 5H1.4, 5H1.12 (U.S. SENT'G COMM'N 2024). Importantly, however, those provisions were removed in the most recent round of amendments to the Guidelines. See *infra* notes 286–92 and accompanying text.

Employing linear regression, I control for various potential sources of inequality and explore the relationships between potentially biasing factors and sentences.

The results are encouraging.⁵⁶ For the most part, I do not find evidence that either race or politics has a substantial impact on the effectiveness of mitigation. Certain types of mitigation that focus on aspects of the defendant's background—like their character, history of mental illness, history of a substance use disorder, or family responsibilities—are powerful predictors of reduced sentences no matter the race of the defendant or the political background of the judge. In that way, mitigation may function as a sort of rising tide that lifts all boats, aiding defendants regardless of characteristics that may result in inequality in other parts of criminal procedure. Indeed, I find some evidence that mitigation might disproportionately *help* non-White defendants in certain limited circumstances. And mitigation's impact is substantial: an additional 1,000 words of mitigation about a defendant's personal circumstances predicts an approximately 13 percent reduction in sentence relative to the middle of the defendant's Guidelines range.

That is not to say that there are no disparities in sentencing mitigation. I find one important racial disparity—although a given amount of mitigation presented to a judge predicts a similar reduction in sentence regardless of race, attorneys present *less* mitigation when representing Black and Hispanic defendants. But, as I explore further below, this effect is not likely due to racial bias; instead, it is most plausibly explained by the fact that Black and Hispanic defendants are detained pretrial at far greater rates than White defendants and defendants who are detained are less able to craft a mitigation strategy with their attorneys.

I also find two sources of inequality related to the nature of defense counsel. First, while a given amount of mitigation presented by CJA panel-appointed attorneys equally predicts reduced sentences as when presented by federal defenders or privately retained counsel, CJA panel-appointed attorneys present far *less* mitigation than the other types of counsel. As a result, defendants represented by CJA panel attorneys—who typically only have that appointment by luck of the draw—likely receive less benefit from mitigation than others. Second, even when looking only among federal defenders, there is substantial variation in the amount of mitigation that individual attorneys present: some defenders are committed to presenting mitigation, whereas others are not.

It is also important at the outset to recognize the limitations of my methods. First, all of the data I report here are observational (rather than the result of a randomized experiment), making causal conclusions very challenging. In places where I do find significant effects—such as increased presentations of various types of mitigation correlating with reduced sentences—it is possible that other unmeasured variables are responsible for the effect. Although I try

56. The results discussed here are discussed further in Part II.

to reduce the possibility of this by controlling for a variety of defendant and case characteristics, causal inference will always be limited in contexts like this one. Second, I draw from a relatively limited sample of just over 300 cases, which warrants caution in drawing strong conclusions. Moreover, some of the important findings I describe, like a lack of racial disparity in the relationship between mitigation and sentencing outcomes, are *null* findings—the absence of a difference. These circumstances make it difficult to clearly interpret results. Although the cases I study were randomly selected from across U.S. federal districts, this study is the first of its kind and requires replication and extension in the future to support its findings.

On the whole, however, my findings are positive ones. They are consistent with the notion that judges are able to make individualized, discretionary sentencing decisions based on a defendant's mitigating circumstances without introducing significant racial bias. Likewise, my findings are consistent with the notion that judges across the political spectrum consider mitigation important and apply it in similar ways. These are important data points in the larger sentencing debate about whether judges should have significant discretion to consider a variety of factors at sentencing or should be constrained by limited guidelines that encourage consistency. Much of the concern surrounding discretionary sentencing stems from worries that bias—especially racial bias—will lead to inequality. My data suggest that judges are able to avoid such biases, at least in deciding how to consider mitigation.

My data also suggest that we ought to consider legal reform surrounding sentencing mitigation. I suggest three primary areas. *First*, federal law governing mitigation is confusing at best and outright contradictory at worst. The Guidelines ought to embrace the fact that judges find mitigation relevant and consider it at sentencing, and the Guidelines should provide more reasonable guidance as to how to use it. *Second*, we should ease barriers to developing mitigation for defendants who are detained prior to sentencing. There are straightforward ways to do this: by increasing detained defendants' access to visitation, phone and written communications, and records. The largest racial disparity I see in my data—that attorneys present less mitigation when representing Black and Hispanic defendants than White defendants—may be driven by the fact that Black and Hispanic defendants are detained at higher rates than White defendants. Although we should seek to remediate that underlying disparity by reducing detention rates, we should also increase access to mitigation to minimize the gap between what detained defendants and released defendants receive. *Third*, we should focus on devoting more resources to developing mitigation. Despite its apparent importance, mitigation is often an afterthought in noncapital sentencing, and my data suggest that there is substantial variability in how much attorneys prioritize mitigation. We should increase mitigation training, especially for CJA panel-appointed attorneys, and devote increased resources to mitigation specialists, who may be more efficient at investigating and articulating compelling mitigation than lawyers.

This Article proceeds in three parts. Part I provides the theoretical framework for the project by outlining the aspects of federal sentencing that make mitigation so important. I also examine the literature documenting inequalities at sentencing across the categories of race, politics, and the identity of defense counsel. Part II describes my methods and reports the results of my analysis. I pair a hand-coded set of sentencing memoranda with previously unavailable data from the U.S. Sentencing Commission to illuminate areas in which defendants may receive unequal mitigation outcomes. Part III explores the ramifications of my results and identifies areas of potential reform, with the goal of promoting equality across defendants.

I. INEQUALITY AT SENTENCING

A. Background Law on Federal Sentencing and Mitigation

Before we think about how various inequalities may affect sentencing mitigation, we must first understand the basic framework of how mitigation operates. Until the 1980s, federal statutes—and most state ones as well—gave sentencing judges “an enormous range of choices,” commonly allowing judges to choose a sentence anywhere from a single day to twenty years or more.⁵⁷ The statutes prescribing that range typically said nothing about what conduct ought to give rise to a low sentence as compared to a high one.⁵⁸ Once a judge sentenced an individual, further discretion was vested in parole officials who then decided whether an individual was sufficiently rehabilitated to be released.⁵⁹ Starting around the 1970s—and in particular led by federal Judge Marvin E. Frankel—commentators began to criticize the discretion-based system, largely based on concerns that discretionary actors were unable to apply discretion equally across cases, leading to systemic biases and unfairness.⁶⁰

In many jurisdictions, discretion skeptics won the debate, eventually culminating in the U.S. Sentencing Guidelines and similar guideline

57. DEMLEITNER ET AL., *supra* note 52, at 131 (“Trial judges in federal and state systems had nearly unfettered discretion to impose on defendants any sentence selected from wide statutory ranges.”); *see also* Marvin E. Frankel, *Lawlessness in Sentencing*, 41 U. CIN. L. REV. 1, 4 (1972).

58. Frankel, *supra* note 57, at 4 (“The statutes granting such powers characteristically say nothing about the factors to be weighed in moving to either end of the spectrum or to some place between.”).

59. DEMLEITNER ET AL., *supra* note 52, at 131 (describing “similar” discretion of judges and parole officials); Frankel, *supra* note 57, at 1 (describing parole officials as “unregulated”).

60. *See, e.g.*, Frankel, *supra* note 57, at 17 (“The two most basic and obvious evils in our sentencing process are (1) the excessive powers of the individual judge and (2) the inadequacies of judges (or anyone) for the fair and acceptable exercise of such powers.”); FRANKEL, *supra* note 53, at 10–11, 21–24.

structures in many states.⁶¹ Arising out of the Sentencing Reform Act of 1984,⁶² the Guidelines provide the “starting point and the initial benchmark” for the judge’s sentencing decision.⁶³ The Guidelines do this by setting a potential range of sentences (e.g., fifty-seven to seventy-one months)⁶⁴ based primarily on two factors: (1) the “offense conduct,” which is defined by the statute of conviction and various “specific offense characteristics” that may increase the severity of the offense;⁶⁵ and (2) the defendant’s “[c]riminal [h]istory and [c]riminal [l]ivelihood,” which is defined by the defendant’s prior convictions, scored to place the defendant into a “criminal history category.”⁶⁶ The offense conduct and criminal history category form the axes of a sentencing grid to determine the Guidelines range in each individual case. Once they are calculated, the judge can simply identify the appropriate row and column to determine the final Guidelines range.⁶⁷

Notably, the kinds of sentencing mitigation described in the Introduction to this Article—things like Brent Richards’s traumatic upbringing and Torrence Triplett’s drug addiction—are almost entirely absent from the Guidelines calculations I just described.⁶⁸ Indeed, for nearly their entire history, the Guidelines have cabined and minimized mitigation related to specific personal characteristics of criminal defendants. At a general level, Part 5H of the Guidelines long counseled that “in order to avoid unwarranted sentencing disparities,” courts “should not give [specific defendant characteristics] excessive weight.”⁶⁹ And—until recent amendments discussed below—the Guidelines provided more specific guidance as to particular kinds of characteristics. They instructed that “education and vocational skills,”⁷⁰ “family ties and responsibilities,”⁷¹ “prior good

61. See generally U.S. SENT’G GUIDELINES MANUAL § 1A (U.S. SENT’G COMM’N 2024) (outlining “guidelines that will further the basic purposes of criminal punishment: deterrence, incapacitation, just punishment, and rehabilitation”); Kelly Lyn Mitchell, *State Sentencing Guidelines: A Garden Full of Variety*, 81 FED. PROB. 28 (2017) (describing state sentencing guideline systems).

62. Pub. L. No. 98-473, 98 Stat. 1987 (codified as amended in scattered sections of 18 and 28 U.S.C.).

63. *Gall v. United States*, 552 U.S. 38, 49–50 (2007).

64. See U.S. SENT’G GUIDELINES MANUAL § 5A (setting forth a “sentencing table” of potential Guidelines ranges, including fifty-seven to seventy-one months as one potential range).

65. See *id.* § 2 (organizing offense conduct “by offenses and divided into parts and related sections that may cover one statute or many,” and noting that “[e]ach offense has a corresponding base offense level and may have one or more specific offense characteristics that adjust the offense level upward or downward”).

66. See *id.* § 4A1.1–2 (defining how individual convictions are scored and then used to determine each defendant’s criminal history category).

67. *Id.* § 5A (sentencing table).

68. See *supra* notes 1–20 and accompanying text.

69. U.S. SENT’G GUIDELINES MANUAL § 5H.

70. *Id.* § 5H1.2.

71. *Id.* § 5H1.6.

works,”⁷² and “[l]ack of guidance as a youth”⁷³ were not ordinarily relevant in deciding whether to sentence outside the Guidelines range. Other characteristics, like age,⁷⁴ mental and emotional conditions,⁷⁵ and physical condition,⁷⁶ “may be relevant” in deciding whether to sentence outside the Guidelines range, but typically only in unusual circumstances.⁷⁷ In short, the Guidelines always instructed judges that individual mitigating circumstances are only of limited importance, if worth any consideration at all.⁷⁸

But another source of federal law, separate from the Guidelines, also provides judges with sentencing guidance.⁷⁹ In addition to creating the Sentencing Commission structure that ultimately led to the Guidelines, the Sentencing Reform Act of 1984 laid out a framework of statutes regulating sentencing.⁸⁰ One of those statutes, 18 U.S.C. § 3553(a)—sometimes referred to as “the federal sentencing statute”—gives judges extremely broad latitude in deciding the sentence.⁸¹ Among other things, it instructs judges to consider “the nature and circumstances of the offense and the history and characteristics of the defendant.”⁸² The statute does not define the “history

72. *Id.* § 5H1.11.

73. *Id.* § 5H1.12. For this characteristic, the Guidelines go even farther: whereas they describe many other personal characteristics as not “ordinarily relevant,” they describe lack of guidance as a youth as “not relevant,” period. *Id.*

74. *Id.* § 5H1.1. In 2024, the Commission amended the guidelines regarding age as a mitigating circumstance, noting that “youthful individuals generally are more impulsive, risk-seeking, and susceptible to outside influence as their brains continue to develop into young adulthood.” U.S. SENT’G COMM’N, 2024 AMENDMENTS TO THE SENTENCING GUIDELINES 25 (2024), https://www.ussc.gov/sites/default/files/pdf/amendment-process/reader-friendly-amendments/202405_RF.pdf [<https://perma.cc/6VAM-GMYN>].

75. U.S. SENT’G GUIDELINES MANUAL § 5H1.3.

76. *Id.* § 5H1.4.

77. Importantly, some of these limitations are at least partially driven by statutory language. In the Sentencing Reform Act, Congress required that the Commission draft the Guidelines so as to “reflect the general inappropriateness of considering” certain types of mitigation, including “education, vocational skills, employment record, family ties and responsibilities, and community ties.” 28 U.S.C. § 994(e). It is not clear how limiting this language is, as there is a strong argument based on the Act’s legislative history that Congress did not intend for it to limit consideration of mitigation. *See* John B. Meixner Jr., *The New Lawlessness in Sentencing 17* (August 2025) (unpublished manuscript) (on file with the *Fordham Law Review*). But it is likely that the Commission sees the language as a limit to its authority. *See id.* at 18.

78. I note here that this result—minimization of mitigation—is likely not what Judge Frankel and other reformers envisioned. *See infra* note 295 and accompanying text.

79. At this point, some readers may wonder whether plea bargaining swamps sentencing entirely because so many cases reach sentencing via plea rather than trial. To be sure, plea bargains have a substantial impact on sentences. But, as others have noted, “in most circumstances, judges will be able to substantially influence sentences even in plea-bargained cases, and even in jurisdictions that prohibit judicial involvement in plea negotiations.” Jeffrey Bellin & Jenia I. Turner, *Sentencing in an Era of Plea Bargains*, 102 N.C. L. REV. 179, 226 (2023).

80. *See generally* Pub. L. No. 98-473, 98 Stat. 1987 (codified as amended in scattered sections of 18 and 28 U.S.C.).

81. *See* 18 U.S.C. § 3553(a).

82. *Id.* § 3553(a)(1). Subsection (a)(1) provides the most important set of factors for the judge to consider, but § 3553(a) also instructs judges to consider things like whether the sentence will promote the various theoretical bases of punishment (like deterrence,

and characteristics of the defendant,” nor does it restrain the sorts of characteristics that might fall under that broad umbrella. Thus, in stark contrast to the Guidelines (prior to their amendment in 2025), the federal sentencing statute allows judges to consider a wide range of mitigation and gives them substantial discretion to decide how to weigh it.⁸³

Further complicating matters, the Guidelines are now advisory, not mandatory. In 2005, the Supreme Court held in *United States v. Booker*⁸⁴ that the mandatory Guidelines scheme laid out in the Sentencing Reform Act improperly shifted sentencing fact-finding to the judge (rather than the jury), in violation of the Sixth Amendment.⁸⁵ After *Booker*, the judge must first consult the Guidelines range, but they may then look to the factors laid out in the federal sentencing statute—including the broad “history and characteristics of the defendant”—and simply decide to impose a sentence below the Guidelines range (termed a *variance*).⁸⁶

And, in 2025, the Commission introduced a final twist to the confusing structure of mitigation in federal sentencing. In a sweeping set of amendments to the Guidelines, the Commission voted to eliminate *all* formal consideration of mitigating characteristics as part of the Guidelines process.⁸⁷ The amendments strike Part 5H in its entirety and move all consideration of mitigating circumstances to a historical appendix.⁸⁸ The amendments now signal broad deference to the sentencing statute laid out in § 3553(a), essentially codifying *Booker*’s holding that gives judges flexibility to consider mitigation broadly.⁸⁹

incapacitation, rehabilitation, and retribution), avoiding unwarranted sentencing disparities, and the need to provide restitution for the offense. *Id.* § 3553(a)(1)–(7).

83. Of course, there are some situations where the sentencing judge’s discretion is limited, regardless of the language of the statute or the Guidelines. All federal criminal statutes have a statutory maximum sentence (above which the judge cannot go), and some have mandatory minimum sentences that set a floor (below which the judge cannot go). *See, e.g.*, 18 U.S.C. § 924(a)(2) (prescribing a ten-year statutory maximum penalty—but no mandatory minimum penalty—for most federal firearms offenses).

84. 543 U.S. 220 (2005).

85. *Id.* at 226–27.

86. *See, e.g.*, *United States v. Grams*, 566 F.3d 683, 686–87 (6th Cir. 2009) (“A ‘variance’ refers to the selection of a sentence outside of the advisory Guidelines range based upon the district court’s weighing of one or more of the sentencing factors of § 3553(a).” A departure, in contrast, is a sentence outside of the Guidelines range that “results from the district court’s application of a particular Guidelines provision.”); *see also* U.S. SENT’G COMM’N, 2024 SOURCEBOOK OF FEDERAL SENTENCING STATISTICS 178, 191 (2025), <https://www.ussc.gov/sites/default/files/pdf/research-and-publications/annual-reports-and-sourcebooks/2024/AppendixA.pdf> [<https://perma.cc/7V4J-VY4D>] (providing definitions of upward and downward variances and departures).

87. U.S. SENT’G COMM’N, AMENDMENTS TO THE SENTENCING GUIDELINES 82 (2025), https://www.ussc.gov/sites/default/files/pdf/amendment-process/reader-friendly-amendment-s/202505_RF.pdf [<https://perma.cc/A78Q-HRY4>].

88. *Id.*

89. These amendments will have a potentially substantial impact on the function of sentencing mitigation in the federal system. Although a full treatment of them is beyond the scope of this Article, I provide a more complete analysis elsewhere. *See* Meixner, *supra* note 77, at 38–39.

Apart from these various (and sometimes competing) sources of law, how does a sentencing judge actually receive the information necessary to determine the Guidelines range and assess any relevant mitigation? There are several avenues. The first one is the presentence report (“PSR”). Once a defendant has been convicted of a federal crime, a probation officer conducts a presentence investigation, which includes an interview with the defendant (with counsel present).⁹⁰ Based on the investigation, the officer determines the applicable Guidelines range and also reports on “the defendant’s history and characteristics,” including “any circumstances affecting the defendant’s behavior that may be helpful” in the judge’s sentencing decision.⁹¹

Aside from the PSR, mitigation comes to the judge in several other forms. The most important is the sentencing memorandum: a brief filed by the defense or the prosecution (or both) “advocating for a particular sentence.”⁹² The sentencing memorandum allows defense attorneys to articulate mitigation relating to both the offense itself and the defendant’s personal characteristics, often including “a rich array of information that would never be part of the PSR.”⁹³ After the parties file sentencing memoranda, the court typically holds a sentencing hearing, during which the parties have an opportunity to argue for a particular sentence, which may include discussion of mitigation.⁹⁴

B. Potential Sources of Inequality

With that baseline knowledge of the sentencing framework, we can now turn to the primary question here: do particular categories of defendants (e.g., White defendants, defendants with privately retained counsel, and so forth) receive greater benefits from mitigation than others? In the remainder of this part, I explore the background literature that might inform the answer to this question, before turning to my empirical approach.

1. Race

Stark racial disparities in sentencing have been well documented for many decades. Dozens of studies have documented how—when looking at simple statistics of sentence lengths—Black and Hispanic defendants receive longer sentences than White defendants.⁹⁵ For example, a Sentencing Commission

90. See FED. R. CRIM. P. 32(c).

91. FED. R. CRIM. P. 32(d)(2)(A).

92. See Meixner, *supra* note 31, at 1408.

93. *Id.*

94. See FED. R. CRIM. P. 32(i) (describing procedures for sentencing hearings).

95. See, e.g., INTER-AM. COMM’N ON HUM. RTS., WRITTEN SUBMISSION OF THE AMERICAN CIVIL LIBERTIES UNION ON RACIAL DISPARITIES IN SENTENCING, HEARING ON REPORTS OF RACISM IN THE JUSTICE SYSTEM OF THE UNITED STATES 1 (2014), https://www.aclu.org/sites/default/files/assets/141027_iachr_racial_disparities_aclu_submission_0.pdf [<https://perma.cc/X7PG-FLH5>] (collecting sources identifying racial disparities); Jill K. Doerner & Stephen Demuth, *The Independent and Joint Effects of Race/Ethnicity, Gender, and Age on Sentencing Outcomes in U.S. Federal Courts*, 27 JUST. Q. 1, 2 (2010) (“Although blacks and Hispanics

report from the late 2010s found that Black federal defendants receive sentences nearly 20 percent longer than White defendants.⁹⁶ These differences translate to familiar disparities in the prison population: although less than 15 percent of the U.S. population is Black, nearly 40 percent of the state and federal prison population is.⁹⁷ And the disparities include Hispanic populations too—in 2015, Black and Hispanic people comprised only about 30 percent of the U.S. population but nearly two-thirds of its prison population.⁹⁸

The story, of course, is much more complex than simple differences across races. At least some of the raw differences described above might be explained by other factors that correlate with race, such as criminal history. Indeed, in the 1980s and 1990s, “[a] number of studies determined that a large portion of the racial disparity in incarceration rates can be attributed to racial differences in offending patterns and criminal histories.”⁹⁹ A 1983 report from the National Research Council that examined the literature concluded that nonrace factors accounted for “most of the disproportionate representation of black males in U.S. prisons”¹⁰⁰—a conclusion that “most scholars contend . . . is still valid today.”¹⁰¹ Recent research seems to support this conclusion. In 2023, Chad M. Topaz and his coauthors examined over half a million federal sentencing records from the Sentencing Commission’s datafiles from 2006 to 2020 and found that, although Black defendants received raw sentences about nineteen months longer than White defendants, once controlling for a number of other factors (like age, education, and the presumptive sentencing range), race accounted for only 1.9 months of the disparity.¹⁰² Other studies have yielded similar results,

are numerical minorities within U.S. society, as defendants in the criminal courts and inmates in prisons, they are often majorities and almost always overrepresented.”).

96. U.S. SENT’G COMM’N, 2017 REPORT, *supra* note 45, at 6 (“The Commission found that sentences of Black male offenders were longer than those of White male offenders for all periods studied. Black male offenders’ sentences were 19.1 percent longer than those of White male offenders during the Post-Report period.”); *see also* U.S. SENT’G COMM’N, DEMOGRAPHIC DIFFERENCES IN FEDERAL SENTENCING 4 (2023), https://www.uscc.gov/sites/default/files/pdf/research-and-publications/research-publications/2023/20231114_Demographic-Differences.pdf [<https://perma.cc/8PGZ-3553>] [hereinafter U.S. SENT’G COMM’N, 2023 REPORT] (reporting similar racial disparities).

97. Cassia Spohn, *Race and Sentencing Disparity*, in REFORMING CRIMINAL JUSTICE: A REPORT OF THE ACADEMY FOR JUSTICE ON BRIDGING THE GAP BETWEEN SCHOLARSHIP AND REFORM 169, 171 (2017); *see also* *Racial Disparity*, NAT’L ASS’N OF CRIM. DEF. LAWS., <https://www.nacdl.org/Landing/RacialDisparity> [<https://perma.cc/2WYW-AG6P>] (last visited Sep. 10, 2025).

98. Spohn, *supra* note 97, at 171–72.

99. *Id.* at 173.

100. NAT’L RSCH. COUNCIL, RESEARCH ON SENTENCING: THE SEARCH FOR REFORM 92 (Alfred Blumstein, Jacqueline Cohen, Susan E. Martin & Michael H. Tonry eds., 1983), <https://nap.nationalacademies.org/read/19436/chapter/4#92> [<https://perma.cc/9NP6-SLX3>].

101. Spohn, *supra* note 97, at 174.

102. Chad M. Topaz, Shaoyang Ning, Maria-Veronica Ciocanel & Shawn Bushway, *Federal Criminal Sentencing: Race-Based Disparate Impact and Differential Treatment in Judicial Districts*, 10 HUMANS. & SOC. SCIS. COMM’NS 1, 3, 6 (2023). The authors found similar results for Hispanic defendants: they had raw sentences five months longer than White

finding that much—but not all—racial disparity in sentences is accounted for by nonrace factors.¹⁰³

There is additional nuance as well. Most of the racial disparity in sentencing relates to the judge’s decision whether to incarcerate at all, not to the length of the sentence. The Sentencing Commission’s most recent report indicates that, when only considering defendants who received a term of incarceration, Black men received sentences 4.7 percent longer than White men (as compared to a 13.4 percent disparity when considering all sentences, including noncustodial ones).¹⁰⁴ As a corollary, Black men are more than 23 percent less likely to receive a probationary sentence than White men.¹⁰⁵ Other studies report similar trends.¹⁰⁶

But regardless of whether race explains differences in sentence lengths or merely differences in decisions of whether to incarcerate at all, a critical question arises: do these race effects reflect bias at sentencing itself or elsewhere in the criminal justice process? The answer is relatively unclear. As a leading scholar recently explained, most studies are “unable to explain *why* racial minorities [are] sentenced more harshly than whites, whether disparate treatment [is] found only at sentencing or accumulated as cases moved through the court process, or whether the disparities reflected decisions made by prosecutors as well as judges.”¹⁰⁷ However, a number of relatively recent studies imply that this “cumulative disparity”—racially disparate outcomes across events like pretrial detention decisions and plea

defendants, but that difference disappeared entirely when controlling for other individual factors. *Id.*

103. U.S. SENT’G COMM’N, 2023 REPORT, *supra* note 96, at 4 (controlling for various individual factors and finding that Black men received sentences 13.4 percent longer than White men); Crystal S. Yang, *Free at Last?: Judicial Discretion and Racial Disparities in Federal Sentencing*, 44 J. LEGAL STUD. 75, 92 (2015) (reporting similar differences between Black, White, and Hispanic defendants).

104. U.S. SENT’G COMM’N, 2023 REPORT, *supra* note 96, at 10, 15.

105. *Id.* at 15. The Commission reports similar findings for Hispanic defendants. *Id.*

106. See, e.g., Cassia Spohn & Jerry Cederblom, *Race and Disparities in Sentencing: A Test of the Liberation Hypothesis*, 8 JUST. Q. 305, 305 (1991) (“We found that defendant’s race had a direct effect only on the decision to incarcerate but had indirect effects on both incarceration and sentence length.”); Cassia Spohn & David Holleran, *The Imprisonment Penalty Paid by Young, Unemployed Black and Hispanic Male Offenders*, 38 CRIMINOLOGY 281, 281 (2000) (exploring various offender characteristics and finding that “[a]lthough none of the offender characteristics affects the length of the prison sentence, each has a significant direct effect on the likelihood of incarceration in at least one of the jurisdictions”); David S. Abrams, Marianne Bertrand & Sendhil Mullainathan, *Do Judges Vary in Their Treatment of Race?*, 41 J. LEGAL STUD. 347, 348–49, 368–69 (2012); Joshua B. Fischman & Max M. Schanzenbach, *Racial Disparities Under the Federal Sentencing Guidelines: The Role of Judicial Discretion and Mandatory Minimums*, 9 J. EMP. LEGAL STUD. 729, 757–61 (2012) (finding evidence that increases in federal sentencing discretion for judges did not increase racial disparities). See generally Christopher J. Ferguson & Sven Smith, *Race, Class, and Criminal Adjudication: Is the US Criminal Justice System as Biased as Is Often Assumed?: A Meta-Analytic Review*, 75 AGGRESSION & VIOLENT BEHAV. 1 (2024) (meta-analysis reporting limited effects of racial bias in sentencing).

107. Spohn, *supra* note 97, at 177 (emphasis in original).

rates—explains a substantial amount of the observed sentencing disparity.¹⁰⁸ Racial disparities in prosecutorial decision-making also likely play a critical role that has carryover effects to sentencing. One prominent empirical study, for example, found that a prosecutor's decision concerning whether to charge a mandatory minimum sentence explains somewhere between half and all of the Black-White sentencing gap.¹⁰⁹

To sum up the literature, there are good reasons to think that at least some racial bias influences sentencing. However, in real-world settings, it is difficult to know how much disparity is the direct result of bias at sentencing, the result of bias at other stages of the criminal justice system, or the result of other nonracial case or defendant characteristics. What might this understanding tell us about how judges are likely to be influenced by racial bias in considering sentencing mitigation? It is difficult to know, as most of the research examining the effects of race on sentencing decisions does not consider mitigation. At least one study, however, is encouraging. Tina Freiburger used an experimental survey to examine just under 200 judges' sentencing decisions in various crime vignettes.¹¹⁰ Freiburger examined a number of variables, including race and gender, but also included potentially mitigating information in the form of the defendant having a familial responsibility to children.¹¹¹ Such mitigation resulted in generally lower sentences for all defendants but interestingly provided a significantly greater benefit for Black men than White men, at least suggesting that some mitigation may particularly benefit non-White defendants.¹¹² On the whole, though, the literature provides relatively little data on how mitigation may differentially affect defendants based on their race.¹¹³

108. See *id.* at 178–79; see also John Woolredge, James Frank, Natalie Goulette & Lawrence Travis III, *Is the Impact of Cumulative Disadvantage on Sentencing Greater for Black Defendants?*, 14 CRIMINOLOGY & PUB. POL'Y 187, 217 (2015) (finding evidence of “greater cumulative disadvantages for Black suspects via pretrial detention” and noting “the importance of considering the more ‘subtle’ processes contributing to the disproportionate overrepresentation of Blacks in U.S. prisons”). See generally Besiki L. Kutateladze, Nancy R. Andiloro, Brian D. Johnson & Cassia C. Spohn, *Cumulative Disadvantage: Examining Racial and Ethnic Disparity in Prosecution and Sentencing*, 52 CRIMINOLOGY 514 (2014) (finding similar results using datasets from the New York County District Attorney's Office).

109. Starr & Rehavi 2013, *supra* note 40, at 5–7 (criticizing studies that “consider the judge's final sentencing decision in isolation, ignoring crucial earlier stages of the justice process,” and finding that “between half and the entire gap can be explained by the prosecutor's initial charging decision”). See generally Bryan Holmes & Christopher D'Amato, *Judicial and Prosecutorial Decision-Making: Assessing the Effects of Race, Gender, and Age on Federal Downward Sentencing Departures, 2013–2016*, 43 J. CRIME & JUST. 449 (2020) (finding racial disparities in prosecutorial recommendations for downward departures). See also Naomi Murakawa & Katherine Beckett, *The Penology of Racial Innocence: The Erasure of Racism in the Study and Practice of Punishment*, 44 L. & SOC. REV. 695, 708 (2010) (noting especially a broad “hydraulic displacement” of discretion from judges to prosecutors in the wake of sentencing guidelines, such as those imposed in the federal courts).

110. Tina L. Freiburger, *The Effects of Gender, Family Status, and Race on Sentencing Decisions*, 28 BEHAV. SCI. & L. 378, 383–86 (2010).

111. See *id.*

112. *Id.* at 388–91.

113. Before concluding the discussion on race in sentencing, I note that most of the work described here relates to routine felony cases, rather than death penalty cases. There is a rich

2. Politics

Though perhaps not as robust as the literature examining the interaction between race and sentencing, a number of economists, criminologists, and lawyers have studied how judicial politics affect sentencing decisions. The basic takeaway of most of those studies is that Republican-appointed judges (and overtly conservative judges in elected, rather than appointed, positions) tend to sentence defendants more harshly than Democrat-appointed judges. For example, Lydia B. Tiede and her coauthors examined a sample of federal cases in which the prosecutor or defendant recommended a departure from the Guidelines range.¹¹⁴ After controlling for several other individual judge characteristics (such as gender, race, and time served on the bench), the authors found that judges appointed by Democrats were more likely than judges appointed by Republicans to grant a departure for the defendant.¹¹⁵ Indeed, “[w]hen the party of the appointing president switches from Republican to Democrat, judges are 19 percent more likely to vote in favor of defendants.”¹¹⁶ Other studies have reached similar conclusions. Exploring federal sentencing data from 1992 to 2001, Max M. Schanzenbach and Emerson H. Tiller found that, when considering “street crime” (violent, theft, and drug crimes), Democratic-appointed judges sentenced defendants roughly 10 percent lower than Republican-appointed judges.¹¹⁷ The full story, though, is nuanced: when considering all crime types, the partisan effect disappeared due to a different pattern in white-collar crime cases.¹¹⁸ Several other studies have yielded similar results.¹¹⁹

All of these studies examined the federal system where judges are political only in the sense that they are appointed by the president and confirmed by the Senate.¹²⁰ Do the same conclusions hold true among state-level judges in jurisdictions where they are democratically elected and subject to more

literature, of course, on the relationship between the race of various individuals involved in death penalty cases (primarily, the race of the defendant and the victim). *See generally* Anthony G. Vito, *Race and the Death Penalty*, in OXFORD RESEARCH ENCYCLOPEDIA OF CRIMINOLOGY AND CRIMINAL JUSTICE (2021) (summarizing research); Cassia Spohn, *Race, Crime, and Punishment in the Twentieth and Twenty-First Centuries*, 44 CRIME & JUST. 49 (2015) (same). Here, I am more interested in theorizing how mitigation might be interpreted in the routine-felony context because all of my data are derived from routine felony cases.

114. Lydia Tiede, Robert Carp & Kenneth L. Manning, *Judicial Attributes and Sentencing-Deviation Cases: Do Sex, Race, and Politics Matter?*, 31 JUST. SYS. J. 249, 257–58 (2010).

115. *Id.*

116. *Id.* at 262–65.

117. Max M. Schanzenbach & Emerson H. Tiller, *Strategic Judging Under the U.S. Sentencing Guidelines: Positive Political Theory and Evidence*, 23 J.L. ECON. & ORG. 24, 39–40 (2007).

118. *See id.* at 38–40.

119. *See, e.g.,* Max M. Schanzenbach & Emerson H. Tiller, *Reviewing the Sentencing Guidelines: Judicial Politics, Empirical Evidence, and Reform*, 75 U. CHI. L. REV. 715, 734 (2008) (expanding their prior study to judge-level data and finding “consistent partisan differences in sentencing [that] are expressed both in terms of offense-level adjustments and departures”).

120. U.S. CONST. art. III, § 1.

explicit partisan pressures? There are relatively few studies at the individual-judge level. However, the data that do exist at least imply similar effects to those seen at the federal level. For example, one recent study examined a sample of roughly 800 cases across forty elected state judges in Ohio.¹²¹ Although the authors' controls for other sources of variability were relatively limited, Republican-affiliated judges were more severe in their sentencing decisions than Democratic-affiliated judges.¹²² Other papers focusing on judicial behavior in elected state systems during periods before elections found that elected judges tend to sentence defendants to longer terms as they approach reelection cycles.¹²³

Some scholars have focused more explicitly on interactions between race and judicial ideology. For example, Alma Cohen and Crystal S. Yang linked federal sentencing data from the Commission to individual judge information for defendants sentenced between 1999 and 2015.¹²⁴ They first replicated earlier findings that Republican-appointed judges sentence more harshly on the whole than Democrat-appointed judges.¹²⁵ Moreover, they found that politics also mediate racial sentencing disparities: "Republican-appointed judges give substantially longer prison sentences to black offenders versus observably similar nonblack offenders compared to Democratic-appointed judges within the same district court."¹²⁶ That difference (between Democrat-appointed judges and Republican-appointed judges) was three months, which represents about "65 percent of the baseline racial sentence gap."¹²⁷ Other studies examining state courts find similar effects.¹²⁸ But the

121. Wendy R. Calaway, Jennifer M. Kinsley & Taylor Wadian, *The Role of Judicial Political Affiliation in Criminal Sentencing Outcomes*, 66 WAYNE L. REV. 347, 366–68 (2021). As the authors of that study note, judicial elections in Ohio are nonpartisan, and thus Ohio judges are "theoretically more removed from political influence than appointed federal judges and state court judges selected through directly political processes." *Id.* at 365. Still, Ohio judges may "receive party endorsements and . . . identify party affiliations on their campaign advertising," so political influences are still unquestionably present. *Id.*

122. *See id.* at 370–71.

123. *See, e.g.*, Gregory A. Huber & Sanford C. Gordon, *Accountability and Coercion: Is Justice Blind When It Runs for Office?*, 48 AM. J. POL. SCI. 247, 248 (2004) ("Examining over 22,000 Pennsylvania trial court sentences for aggravated assault, rape, and robbery convictions in the 1990s, we confirm that sentences for these crimes are significantly longer the closer the sentencing judge is to standing for reelection."); Carlos Berdejó & Noam Yuchtman, *Crime, Punishment, and Politics: An Analysis of Political Cycles in Criminal Sentencing*, 95 REV. ECON. & STAT. 741, 742 (2013) ("Under a broad range of specifications, we find that sentencing of serious offenses becomes more severe as elections approach: sentence lengths increase by around 10% between the beginning and the end of a judge's political cycle.").

124. Cohen & Yang, *supra* note 49, at 161. I note here that the Commission does not provide individual judge identifiers in its data; Cohen and Yang were able to connect judges to the Commission's data by linking separate datasets. *See id.*

125. *Id.* at 175 ("[W]e find that controlling for defendant and case characteristics, Republican-appointed judges give defendants an average of 2.4 months longer in prison than Democratic-appointed judges, 4 percent of the mean sentence length.").

126. *Id.* at 162.

127. *Id.*

128. *See, e.g.*, Ronald Helms & David Jacobs, *The Political Context of Sentencing: An Analysis of Community and Individual Determinants*, 81 SOC. FORCES 577, 577 (2002)

literature in this area is not uniform. Some studies examining district-level differences in judicial ideology find no effect of the appointing party on race-based disparities in sentencing decisions.¹²⁹

As with the research examining the role of the defendant's race on sentencing outcomes, these studies largely tell us about the relationship between a single external variable (political affiliation) and sentencing decisions *generally*, but they do not squarely address how those variables might bear on the *interpretation of mitigation* at sentencing. Still, we can hypothesize about how these results might translate to that area. If conservative judges are generally more punitive and less receptive to defendants' arguments for a lenient sentence, we might expect that they will likewise be less persuaded by mitigating arguments than liberal judges.

3. Counsel Type

The literature on the relationship between the type of defense counsel and sentencing is relatively mixed. As a general matter, defense counsel in criminal cases (either state or federal) can be one of three kinds: (1) privately retained counsel paid for by the defendant; (2) counsel from a public defender's office with attorneys who represent indigent criminal defendants full time; or (3) appointed private counsel who takes an indigent defendant's case but is paid through some government fund, such as the Criminal Justice Act in the federal system.¹³⁰ Typically, this third form of counsel is used where a defendant is indigent but counsel from a public defender's office is not appropriate. For example, counsel may be appointed where the public defender's office already represents another defendant in a case and representation would result in a conflict, or where a defendant has a breakdown in the attorney-client relationship with a public defender and requires new counsel.¹³¹

Do these different classes of defense attorneys achieve different sentencing outcomes for their clients? Some early research indicated that the differences are minimal. Examining just over 600 randomly drawn dispositions and controlling for a handful of other factors (such as race, charge, criminal history, and pretrial detention status), David Willison found no relationship between counsel type and the sentence imposed.¹³² Other examinations of

("African Americans . . . receive longer sentences when local courts are embedded in conservative political environments where a law-and-order presidential candidate received more votes.").

129. See, e.g., Max M. Schanzenbach, *Racial Disparities, Judge Characteristics, and Standards of Review in Sentencing*, 171 J. INSTITUTIONAL & THEORETICAL ECON. 27, 44 (2015) ("Using variation in judges' political affiliation and race at the district level, I find that Democratic appointees are more lenient than Republican appointees. Despite these differences, however, racial disparities do not vary by judge political affiliation.").

130. See *supra* note 24.

131. See *id.*

132. See David Willison, *The Effects of Counsel on the Severity of Criminal Sentences: A Statistical Assessment*, 9 JUST. SYS. J. 87, 90–93 (1984); see also *id.* at 97 ("The findings lend considerable empirical support to the proposition that the performance of counsel (measured in terms of sentence severity) will tend to be relatively uniform."). Notably, the study

state systems have yielded similar results. Marian Williams obtained a larger sample of over 10,000 felony cases from Florida and also found no relationship between attorney type (appointed versus retained) and the sentence imposed.¹³³ A number of other studies in various jurisdictions found similar null effects of attorney type on sentence.¹³⁴

But some studies have found contrasting results when studying all three potential forms of counsel, especially when making comparisons between appointed counsel and other forms. Studying the federal system, Thomas H. Cohen, for example, examined a sample of nearly 90,000 cases from a Bureau of Justice Statistics database.¹³⁵ He found that cases handled by appointed counsel yielded significantly higher conviction rates and sentences, whereas there was no difference between public defenders and private attorneys.¹³⁶ Likewise, James M. Anderson and Paul Heaton exploited the fact that Philadelphia murder cases are quasi-randomly assigned between public defenders and appointed private attorneys, allowing them to isolate attorney type as an independent variable.¹³⁷ They found stark results: being assigned a public defender reduced the probability of a life sentence by 62 percent and resulted in overall sentences 31 percent lower than the sentences attained by other counsel types.¹³⁸

All of the studies discussed so far have examined differences in type, or classification, of counsel—whether privately retained, appointed counsel, or a public defender. But what about differences in *individual* attorneys within the various classifications of counsel? While it might seem obvious that some attorneys are better than others, do defense attorneys vary in ability in predictable ways? The literature in this space is relatively limited, in part because of practical challenges in measurement. As two scholars put it, “[m]easuring attorney ability presents inherent challenges because the nonrandom pairing of attorney and client in most cases makes it difficult, if not impossible, to distinguish between attorney ability and case selection.”¹³⁹

collapsed both types of indigent counsel (public defenders and appointed indigent defense counsel). *Id.* at 91.

133. Marian R. Williams, *Note on Research: A Comparison of Sentencing Outcomes for Defendants with Public Defenders Versus Retained Counsel in a Florida Circuit Court*, 23 JUST. SYS. J. 249, 252–55 (2002).

134. For a helpful literature review, see Thomas H. Cohen, *Who Is Better at Defending Criminals?: Does Type of Defense Attorney Matter in Terms of Producing Favorable Case Outcomes*, 25 CRIM. JUST. POL’Y REV. 29, 33 (2014) (“Overall, these studies show private attorneys and public defenders obtaining similar results for their clients.”).

135. *Id.* at 134.

136. *See id.* at 45–50.

137. James M. Anderson & Paul Heaton, *How Much Difference Does the Lawyer Make?: The Effect of Defense Counsel on Murder Case Outcomes*, 122 YALE L.J. 154, 154, 171–72 (2012).

138. *See id.* at 182–83. For further discussion of the Anderson & Heaton study, see Jeffrey Bellin, *Attorney Competence in an Age of Plea Bargaining and Econometrics*, 12 OHIO ST. J. CRIM. L. 153, 154 (2014) (“The study’s dramatic findings appear to stem from a counterintuitive form of professional competence: aptitude at convincing one’s client to plead guilty.”).

139. David S. Abrams & Albert H. Yoon, *The Luck of the Draw: Using Random Case Assignment to Investigate Attorney Ability*, 74 U. CHI. L. REV. 1145, 1145 (2007).

Getting around these problems by exploiting the random assignment of defense attorneys to cases in Las Vegas, David S. Abrams and Albert H. Yoon demonstrated substantial differences in defense attorney performance across individuals.¹⁴⁰ Top attorneys in the ninetieth percentile of quality obtained 14 percent fewer incarceration sentences than those in the bottom tenth percentile.¹⁴¹ Additionally, certain defender characteristics, such as experience, predicted reduced sentences.¹⁴² In short, the study demonstrated what practicing prosecutors and defense attorneys may find obvious: some defendants benefit from a lucky draw of a good defense attorney, while others suffer from a bad one.¹⁴³

Although the mixed nature of the literature limits what we can conclude about how the role of defense counsel might influence mitigation, we might draw a few inferences. If appointed attorneys tend to obtain higher conviction rates and sentences than public defenders and private attorneys, we might expect them to be less effective in presenting mitigation. Likewise, if there are substantial variations in the general quality of defense attorneys, we would expect there to be variation in the effectiveness of their mitigation presentations as well.

* * *

We have learned several things in this part. At sentencing in federal cases, judges are confronted with contradictory sources of law—the Guidelines and the federal sentencing statute—providing them two different frameworks through which they can consider mitigation. In this system, judges have tremendous discretion in deciding whether and how to consider various forms of mitigation.

Whether characteristics of the players in the case—such as race, politics, and defense counsel type—affect how judges view that mitigation is less clear. There are substantial data that non-White defendants suffer some adverse bias at sentencing generally, but it is not clear whether that bias translates to mitigation. Likewise, there are indications that

140. *See id.* at 1149–50.

141. *See id.* at 1150, 1173.

142. *See id.* at 1170.

143. There may, of course, be other potential sources of inequality that could influence mitigation. Perhaps the most obvious is gender. There is robust literature—both in the federal system and state systems—demonstrating that, even after controlling for various legal factors, women tend to receive more lenient sentences than men. *See, e.g.,* Jill K. Doerner & Stephen Demuth, *Gender and Sentencing in the Federal Courts: Are Women Treated More Leniently?*, 25 CRIM. JUST. POL’Y REV. 242, 261 (2014) (examining federal sentence data and finding that “gender appears to have a significant effect on sentencing outcomes, after accounting for legal and extralegal factors” and that “[f]emale defendants were less likely to receive an incarceration sentence than male defendants and also received shorter sentence length terms,” even after controlling for other relevant factors). And, as with race, politics, and defense attorney identity, these findings might lead to some predictions about how gender and sentencing mitigation interact. If judges show leniency and mercy more frequently toward women, they may also be more likely to take women’s mitigation more seriously. As described more fully below, the relatively small sample of this study (skewed heavily toward male defendants) makes it difficult to identify gender-related effects, but the interaction between gender and mitigation is worth careful study in further projects.

Republican-appointed judges sentence defendants more harshly, but that does not necessarily mean those judges will treat mitigation with special skepticism. And the impact of type of counsel on sentencing is likewise relatively mixed. In short, there is a gap in the literature as to how these potential sources of inequality might affect mitigation.

From this gap, I turn to the current project. I sought to empirically examine sentencing mitigation presented in over 300 federal felony cases. By coding those cases for over a dozen categories of mitigation and comparing that mitigation to the sentences imposed, I was able to determine which categories of mitigation most strongly predict reduced sentences.¹⁴⁴ But the real power of the data I describe here comes from combining my hand-coded dataset with demographic and case data from the U.S. Sentencing Commission. Using those data, which contain a rich array of characteristics about the facts of the cases and the defendants involved, I am able to control for a variety of case characteristics and examine how potential inequalities (like race, politics, and the nature of defense counsel) interact with mitigation. This combination is the first of its kind in the literature. Although it is normally impossible to de-anonymize the Commission's data to allow them to be linked to other datasets, through a cooperative agreement with the Commission, I was able to access de-anonymized Commission data and merge them with my hand-coded dataset. In the next part, I describe my methods in developing those datasets.

II. METHODS AND RESULTS

A. Identifying Cases and Determining Categories of Mitigation

To understand how the potential sources of inequality outlined in Part I.B interact with mitigation at sentencing, I drew on a hand-coded dataset of the types and quantity of mitigation in 302 federal felony cases. I have previously described the methods for collecting that dataset and the initial results derived from it; that work contains a fuller description of those methods.¹⁴⁵ Here, I provide an abbreviated description of the methods from that collection process and further describe how I combined my hand-coded data with data from the U.S. Sentencing Commission.¹⁴⁶

I first sought to obtain a national, representative sample of cases. I identified a sample of just over 300 federal felony cases across all judicial districts in the United States between 2015 and 2018.¹⁴⁷ I weighted the sample based on the size of each judicial district, such that an appropriately

144. I previously described related results in prior work. See Meixner, *supra* note 31, at 1446–49.

145. See *id.* at 1425–38 (methods); *id.* at 1440–53 (results).

146. For a complete description of my coding methods, see *id.* at 1425–38.

147. See *id.* at 1435–36.

larger portion of the sample came from districts with larger criminal dockets than less-busy districts.¹⁴⁸

To assess the mitigation presented in each case, I examined documents filed by defense attorneys called “sentencing memoranda”¹⁴⁹—briefs filed by the parties (both the prosecution and defense) in a criminal case, advocating for a particular sentence.¹⁵⁰ Though filing a sentencing memorandum is optional under the Federal Rules of Criminal Procedure, they are typically permitted (and many judges require them to be filed).¹⁵¹ There are no formal rules governing what a sentencing memorandum can contain, so attorneys focus on a number of areas, including mitigating circumstances about the offense (e.g., the defendant’s limited role or the small amount of harm caused) and mitigating characteristics of the defendant herself (e.g., the defendant’s upbringing, physical and mental health, family background, or history of good character). Particularly for defense attorneys, the sentencing memorandum is typically the ideal way to provide mitigating information about their client and advocate for a lower sentence.¹⁵² Thus, it is the ideal document through which to study sentencing mitigation.¹⁵³

Once I identified the sample of cases, I used the Lexis CourtLink system to download the sentencing memoranda through PACER.¹⁵⁴ I then coded the memoranda for a variety of common types of mitigation.¹⁵⁵ To initially determine the types of mitigation that are commonly presented, I drew on a separate pilot sample of fifty randomly selected sentencing memoranda.¹⁵⁶ I reviewed those memoranda and looked for the presence of mitigating factors in line with those outlined in (1) the U.S. Sentencing Guidelines, (2) the federal sentencing statute laid out at 18 U.S.C. § 3553(a), and (3) generally accepted categories of mitigation outlined in the prior sentencing literature.¹⁵⁷ From that process, I identified two primary categories under

148. *See id.* In gathering the final sample, I had to exclude altogether certain types of cases that were not suitable to investigate mitigation, as certain characteristics can limit the extent to which mitigating evidence will be presented to the court or considered in the sentence. For example, I omitted cases involving plea agreements with a set, agreed-upon sentence (which eliminates judicial discretion to consider mitigation). *See* Sam J. Merchant, *Plea Agreements and Suspending Disbelief*, 37 FED. SENT. REP. 15, 16 (2025) (“In cases with binding plea agreements, judges defer to the parties on the sentence in some appreciable respect.”). I also omit cases reversed on appeal, cases where the top or bottom of the Guidelines range was restricted by a mandatory minimum or statutory maximum sentence, certain types of offenses that have a more limited level of consideration at sentencing (such as certain immigration cases), and cases in which the government recommended that the defendant receive a downward departure for “substantial assistance to authorities” under U.S. Sentencing Guidelines § 5K1.1. *See* Meixner, *supra* note 31, at 1436–37.

149. *See* Meixner, *supra* note 31, at 1408, 1425, 1435–36.

150. *See id.* at 1404–08. Both the prosecution and defense may file a sentencing memorandum. *See id.*

151. *See id.* at 1408.

152. *Id.*

153. *See id.*

154. *See id.* at 1436.

155. *See id.* at 1425.

156. For further details on how I used the pilot sample, *see id.* at 1425–35.

157. *See id.* at 1425.

which most sentencing mitigation falls. First, *offense mitigation* relates to the offense alone, capturing mitigating factors “based on how culpable the defendant is for the crime itself.”¹⁵⁸ Second, “*personal mitigation* relates to the defendant as a person,” disconnected from the offense, and how his personal characteristics and experiences affect his culpability.¹⁵⁹ These two broad categories of mitigation closely track the two main categories that the federal sentencing statute instructs judges to consider in sentencing: the “nature and circumstances of the offense” and the “history and characteristics of the defendant.”¹⁶⁰

Table 1: Mitigation Factors and Categories

Mitigating Factor	Category
Relative Seriousness	Offense
Relative Culpability	
Victim Harm—Minimizing	
Victim Harm—Acknowledging	
Remorse—Supported	
Remorse—Unsupported	
Historical Trauma	Personal
Character	
General Family and Social Background	
Collateral Consequences	
Health—Supported	
Health—Unsupported	
Age	

Within offense mitigation and personal mitigation, I further subdivided arguments into various common mitigating factors, outlined in Table 1.¹⁶¹ Although those are more fully described in prior work, I describe them briefly here below.¹⁶²

1. Offense Mitigation

Relative Seriousness. The most common type of mitigation offered involves arguments relating to the overall seriousness of the offense, its scope, or its significance.¹⁶³ This is not surprising—the federal sentencing statute directs judges to consider “the nature and circumstances of the

158. *Id.*

159. *See id.*

160. 18 U.S.C. § 3553(a)(1).

161. *See* Meixner, *supra* note 31, at 1426.

162. For a full description, including examples of each type of mitigation, see *id.* at 1426–34.

163. *Id.* at 1426.

offense.”¹⁶⁴ This type includes arguments that the nature of the crime was less harmful to society than other crimes or that the Guidelines overstate the actual seriousness of the crime.¹⁶⁵

Relative Culpability. Another category of mitigation relates to the defendant’s role within the offense itself as compared to codefendants, uncharged individuals associated with the crime, or people involved in similar offenses.¹⁶⁶ This project categorizes those comparison-type arguments as relative culpability mitigation.

Victim Harm (Minimizing or Acknowledging). Some arguments attempt to mitigate the seriousness of the offense by claiming that the defendant caused either minimal harm to victims or relatively minor harm compared to other violations of the same statute.¹⁶⁷ Unlike relative culpability, this type of mitigation captures arguments that directly focus on victim harm.¹⁶⁸

Relatedly, some arguments about victim harm do not seek to minimize that harm; instead, they acknowledge that there was harm and accept responsibility for it. I coded these arguments separately as “acknowledging” victim harm, and I coded the former as “minimizing” victim harm.¹⁶⁹

Remorse (Supported or Unsupported). Many memoranda provide statements of the defendant’s remorse for committing the crime, and remorse is a centrally prominent mitigating factor, both in the mitigation literature and in the U.S. Sentencing Guidelines.¹⁷⁰ Remorse is also unique in that judges have to make difficult decisions at sentencing about whether remorse is genuine.¹⁷¹ To reflect that challenge, I used objective criteria to place expressions of remorse into two separate categories: one where the defendant presented some supporting evidence (like specific acts indicating contrition) and one where the expression of remorse was unsupported.¹⁷²

2. Personal Mitigation

Historical Trauma. This common type of personal mitigation includes descriptions of prior traumatic events experienced by the defendant, such as an impoverished or traumatic upbringing, abuse, or other difficulties.¹⁷³

164. 18 U.S.C. § 3553(a)(1).

165. Meixner, *supra* note 31, at 1427.

166. *Id.* at 1427, 1430. As I have noted previously, [w]hile the Sentencing Guidelines in part account for this by either raising the range for a leadership role under § 3B1.1 or lowering the range for a minimal role under § 3B1.2, attorneys also often argue that a defendant’s minimal role in the offense should adjust his sentence downward to a greater extent than what is captured by the Guidelines.

Id. at 1427–28.

167. *Id.* at 1428.

168. *See id.*

169. *See id.*

170. *See id.* at 1429; *see also* U.S. SENT’G GUIDELINES MANUAL § 3E1.1 (U.S. SENT’G COMM’N 2024) (describing reduction for “acceptance of responsibility”).

171. *See* Meixner, *supra* note 31, at 1429.

172. *Id.* For additional discussion of the specific criteria for this coding, *see id.*

173. *Id.* at 1430.

Historical trauma is broad: I coded any arguments about why the defendant's difficult prior life experiences resulted in the commission of a crime under this type, unless the mitigation fell into one of the more specific types described below.¹⁷⁴

Character. Another major kind of personal mitigation is evidence of good character—prior actions that indicate to the judge that the defendant has positive traits.¹⁷⁵ There were numerous examples of this type of mitigation in the pilot memoranda. Defendants made arguments based on strong work ethic and employment history; engagement in prior volunteer work, helping others, or other good acts; good behavior following arrest by adhering to conditions of pretrial release; or not living a “life of excess.”¹⁷⁶

General Family and Social Background. Sentencing memoranda also often contain more general descriptions of defendants' family connections and support systems. Unlike historical trauma and character mitigation, this kind of mitigation does not explicitly connect these facts to why a lesser sentence is warranted but instead provides a general background to humanize the defendant as a real person with meaningful personal connections. To capture this narrower discussion, I limited coding of this type of mitigation to straightforward mentions of the defendant's family and social background that did not qualify under other categories of mitigation.¹⁷⁷

Collateral Consequences. The pilot memoranda also commonly discussed hardships (beyond the imprisonment itself) that the defendant or others connected with the defendant would suffer as a result of punishment.¹⁷⁸ Examples included lost employment, loss of the right to vote or carry a firearm, immigration consequences (such as deportation), or that defendants' families would lose a provider or caregiver because of the defendant's imprisonment.¹⁷⁹

174. *See id.*

175. *Id.* Notably, the Guidelines largely limit the extent to which these circumstances warrant a sentence outside of the Guidelines range. *See supra* notes 68–76 and accompanying text; U.S. SENT'G GUIDELINES MANUAL §§ 5H1.2, 5H1.5, 5H1.11. But there is evidence that judges consider them important, both in self-reports and in how their sentences correlate with character-related mitigation. *See, e.g.,* U.S. SENT'G COMM'N, RESULTS OF SURVEY OF UNITED STATES DISTRICT JUDGES JANUARY 2010 THROUGH MARCH 2010 tbl.13 (2010), https://www.ussc.gov/sites/default/files/pdf/research-and-publications/research-projects-and-surveys/surveys/20100608_Judge_Survey.pdf [<https://perma.cc/8X2L-JH8H>] [hereinafter U.S. SENT'G COMM'N, 2010 SURVEY]; U.S. SENT'G COMM'N, SURVEY OF ARTICLE III JUDGES ON THE FEDERAL SENTENCING GUIDELINES, at B-8 app. B (2003), <https://www.ussc.gov/sites/default/files/pdf/research-and-publications/research-projects-and-surveys/surveys/200303-judge-survey/jsfull.pdf> [<https://perma.cc/TXK5-NA32>] [hereinafter U.S. SENT'G COMM'N, 2003 Survey]; Meixner, *supra* note 31, at 1446–48. Importantly, as I note above, the Sentencing Commission recently voted to approve amendments to the Guidelines that will strike all guidance as to these sorts of individual offender characteristics, so long as Congress does not step in to block the amendment. *See supra* notes 88–89.

176. Meixner, *supra* note 31, at 1431 (quoting Letter from Jennifer E. Willis, Assistant Fed. Def., Fed. Defs. of N.Y., to Hon. Alvin K. Hellerstein, U.S. Dist. J., S. Dist. of N.Y., at 9 (Oct. 7, 2016)).

177. *Id.* at 1431–32.

178. *Id.* at 1432.

179. *Id.*

Health (Supported or Unsupported). Another major type of mitigation is related to the defendant's health, such as physical ailments, mental illness, or substance abuse disorders.¹⁸⁰

Like expressions of remorse, health mitigation is often supported by some concrete objective evidence, such as medical records or other documentation from a health care provider.¹⁸¹ In contrast, other forms of personal mitigation like historical trauma or character mitigation are rarely demonstrated through objective evidence.¹⁸² Thus, I coded health-related mitigation in two categories: one when the mitigation was supported by evidence, and one when it was not.¹⁸³

Age. Some sentencing memoranda also raised the defendant's age as a mitigating factor. Those included arguments that the defendant's advanced age was mitigating (often because of reduced potential for recidivism) or that her youth was mitigation (rendering her less culpable and with a greater potential for change).¹⁸⁴ I coded all of them under this type.

B. Basic Coding Methods and Reliability Check

Using the above categories of mitigation, I coded the 302 cases in the full sample, identifying the number of words in each sentencing memorandum devoted to each kind of mitigation.¹⁸⁵ To promote reliability, I included all citations as part of the mitigation analysis and coded single paragraphs as a single category of mitigation in most cases.¹⁸⁶

Before coding the full sample of cases, I also randomly selected an additional fifteen cases using the same criteria I used to collect the full sample. To assess the coding reliability for each of the categories of mitigation, I and a second coder independently coded each of the fifteen test cases.¹⁸⁷ Measured using the Smith index,¹⁸⁸ we found that the blind coding for all categories of mitigation reached the best two possible results of either "almost perfect" reliability or "substantial" reliability.¹⁸⁹

180. *Id.* at 1433.

181. *Id.*

182. *Id.*

183. *Id.*

184. *Id.* at 1433–44.

185. Prior to the full coding, I developed a detailed codebook to ensure reliability. That codebook is available on file with the author and the *Fordham Law Review*.

186. *Id.*

187. *Id.*

188. The Smith index is "calculated by taking twice the number of agreements in a category and dividing by the sum of the frequency that each rater used that category." *Id.* at 1437–38 (citing Charles P. Smith, *Content Analysis and Narrative Analysis*, in *HANDBOOK OF RESEARCH METHODS IN SOCIAL AND PERSONALITY PSYCHOLOGY* 313, 325 (Harry T. Reis & Charles M. Judd eds., 2000)).

189. Meixner, *supra* note 31, at 1438.

*C. Merging the Mitigation Data with
USSC Demographic Data*

A key feature of this project that allows me to assess potential inequalities in mitigation is merging my hand-coded data with demographic and case data maintained by the U.S. Sentencing Commission. The Commission is an independent agency in the judicial branch, with varied roles. It establishes policies for the sentencing practices of the federal courts, advises other branches on sentencing policy, and also “collect[s], analyze[s], research[es], and distribute[s] a broad array of information on federal crime.”¹⁹⁰ Thus, the Commission collects and maintains a variety of sentencing data from the federal courts on an annual basis.¹⁹¹ Those data include the “individual datafiles,” which contain information about the sentences and demographics of all individuals sentenced in the federal court system across more than two decades.¹⁹² The individual datafiles include, for example, information about the sentence, Guidelines range, age, gender, race, and education level of each federal defendant sentenced.¹⁹³ The datafiles are publicly available on the Commission’s website.¹⁹⁴

Data from the individual datafiles are well studied and regularly used in academic research.¹⁹⁵ Importantly, however, they are anonymized.¹⁹⁶ And because all of the mitigation data that I collected were tied to the identity of individual defendants, there is no publicly available way to merge my hand-coded mitigation data with the anonymized sentencing data maintained by the Commission. However, Congress also gave the Commission authority to “enter into cooperative agreements with private researchers” and provide them with nonpublic data for projects that meet certain criteria, including ensuring that preservation of confidentiality is maintained.¹⁹⁷

Through this process, I was able to obtain the nonanonymized individual data maintained by the Commission for the 302 individuals in my

190. U.S. SENT’G COMM’N, U.S. SENT’G COMM’N VARIABLE CODEBOOK FOR INDIVIDUAL DATAFILE, STANDARDIZED RESEARCH DATA DOCUMENTATION FOR FISCAL YEARS 1999–2023 2 (2024), [https://www.ussc.gov/sites/default/files/pdf/research-and-publications/datafiles/US SC Public Release Codebook FY99 FY23.pdf](https://www.ussc.gov/sites/default/files/pdf/research-and-publications/datafiles/US%20SC%20Public%20Release%20Codebook%20FY99%20FY23.pdf) [<https://perma.cc/DP4V-9235>]; see also 28 U.S.C. § 995(a)(12)(A) (envisioning that the Commission would “serv[e] as a clearinghouse and information center for the collection, preparation, and dissemination of information on Federal sentencing practices”).

191. See VARIABLE CODEBOOK FOR INDIVIDUAL DATAFILE, *supra* note 190, at 2.

192. See *id.*

193. See *id.* at 14, 30, 34, 36, 40.

194. *Commission Datafiles*, U.S. SENT’G COMM’N, <https://www.ussc.gov/research/datafiles/commission-datafiles> [<https://perma.cc/G33N-Y6RP>] (last visited Sep. 10, 2025).

195. See, e.g., Paul J. Hofer, *A Change Election*, 29 FED. SENT’G REP. 69, 73, 79 n.37 (2017).

196. U.S. SENT’G COMM’N, PUBLIC ACCESS TO SENTENCING COMMISSION DOCUMENTS AND DATA 2 (2018), https://www.ussc.gov/sites/default/files/pdf/about/policies/20180814_Public_Access_Documents_Data.pdf [<https://perma.cc/5AM7-JSZ7>] (“The Commission makes various datasets of sentencing information, without individual identifiers, available to the public through the Commission’s website.”).

197. See *id.* at 3; see also 28 U.S.C. § 995(a)(6).

hand-collected dataset.¹⁹⁸ Although the Commission granted me access to all of the variables in the individual datafiles for those defendants, I focus on a number of key variables here.¹⁹⁹

Case Information. Some of the information provided by the Commission relates to the type of case at hand. These variables include codes for the type of crime committed, the dispositional status of the case (e.g., guilty plea versus trial), the federal district and circuit where the case was adjudicated, and the date of the sentencing. Other case information related more directly to the sentence imposed. These data include, for example, the length of incarceration ordered and the Guidelines range. Based on the Guidelines calculation, I calculated the midpoint of each defendant's Guidelines range. Then, I used the defendant's sentence as a percentage of the midpoint of the Guidelines range as the key dependent variable in my study.²⁰⁰ So, for example, if a defendant had a Guidelines range with a midpoint of 100 months and a sentence of ninety months, I coded the sentence as 90 percent, allowing me to identify the strength with which various categories of mitigation predict sentences while controlling for the applicable Guidelines range in each individual case.

I note up front one potential challenge with this approach: it presumes an independence between the Guidelines range (as calculated by the offense level and the defendant's criminal history) and the mitigations presented by a defendant. One might worry that, if a defendant has compelling mitigation and presents that at sentencing, in addition to the mitigation being considered as part of the § 3553(a) analysis in deciding the sentence, the mitigation might *also* affect how the judge decides to calculate the Guidelines range itself, which would mask its effect under this Article's methodology. Although there is no way to measure this sort of effect empirically with my data, I think it is relatively unlikely to be a serious problem. Most of the

198. See UNITED STATES SENTENCING COMMISSION COOPERATIVE AGREEMENT FOR DATA ACCESS WITH PROFESSOR JOHN B. MEIXNER JR. (on file with author and the *Fordham Law Review*).

199. All of the variables I describe from the individual datafiles are explained in the Commission's codebook. See VARIABLE CODEBOOK FOR INDIVIDUAL DATAFILE, *supra* note 190, at 2.

200. Why code the sentence as a function of the midpoint of the Guidelines range? Several reasons. First, coding sentences as a proportion of the Guidelines range accounts for the range itself, which is a strong determinant of sentences that must be controlled for to try to isolate the causal effect of mitigation. But why the midpoint, rather than top of the Guidelines range or the bottom? Largely, because if the Guidelines is supposed to provide the judge a typical range of sentences, the midpoint is the median value in that range and might presumptively be thought of as the suggested "average" sentence for a given crime. Roughly 60 percent of federal sentences are below the midpoint of the Guidelines range, and 40 percent are at the midpoint or above it. See U.S. SENT'G COMM'N, 2023 SOURCEBOOK OF FEDERAL SENTENCING STATISTICS tbl. 34 (2023), https://www.ussc.gov/sites/default/files/pdf/research-and-publications/annual-reports-and-sourcebooks/2023/2023_Sourcebook.pdf [<https://perma.cc/YS95-8ERS>]. In some ways, the decision is arbitrary—regardless of which point in the Guidelines range I set as the anchoring point, coding the sentence as a percentage of that point captures how far the sentence was removed from a point in the Guidelines range. Setting that point at the midpoint, top, or bottom of the range does not materially alter any of the results presented here.

calculations that determine the base offense level and criminal history category are relatively objective. For example, it is unlikely that the judge's subjective perception of the defendant's mitigation would affect the quantity of drugs sold in a drug case,²⁰¹ whether a firearm had an obliterated serial number in a gun case,²⁰² or the number and nature of the defendant's prior convictions in calculating his criminal history category.²⁰³ To be sure, there are some Guidelines calculations that are more subjective, such as determining whether a defendant was an "organizer or leader"²⁰⁴ or a "minimal participant"²⁰⁵ in a crime, or whether a defendant sought to obstruct justice.²⁰⁶ But these guidelines are much less frequently applied, and most of the determinations are relatively rote, indicating that there is relative independence between the Guidelines range and the impact of mitigation.

Demographic Information. Other information related more directly to the demographics of the defendant. These variables included the defendant's age, gender, citizenship status, criminal history, education level, and race.

Non-Commission Information. In addition to the information provided by the Commission, I also collected publicly available case information on judicial politics and the identity of the defense counsel. For judicial politics, I identified the sentencing judge for each of the cases in the sample and then identified the president who appointed the sentencing judge (as well as the party of that president). For defense counsel, I gathered from the publicly available PACER docket the name of the defense attorney at sentencing and coded for whether that attorney was a federal public defender, a privately retained attorney, or a CJA panel-appointed attorney.²⁰⁷

201. See U.S. SENT'G GUIDELINES MANUAL § 2D1.1(a), (c) (U.S. SENT'G COMM'N 2024).

202. See *id.* § 2K2.1(b)(4)(B)(i).

203. See *id.* § 4A1.1.

204. See *id.* § 3B1.1(a).

205. See *id.* § 3B1.2(a).

206. See *id.* § 3C1.1.

207. I note here for clarity that none of this information is available in the Commission's datafiles.

*D. Summary Case Statistics**Table 2: Summary Case Statistics****General***

Total Cases	302
Mean Guidelines Range Midpoint (in months)	120.6
Mean Sentence Imposed (in months)	94.2
Mean Age of Defendant	39

Defendant's Race

White	42.3%
Black	36.3%
Hispanic	16.7%
American Indian/Alaskan	3.5%
Asian/Pacific Islander	1.2%

Defendant's Gender

Male	88%
Female	12%

Judge's Appointing Party

Democrat	54%
Republican	46%

Attorney Type

Federal Defender	37.7%
CJA Appointed	35.6%
Retained	26.7%

Crime Type

Drugs	26.8%
Firearms	18.5%
Fraud/Theft	27.8%
Violent	10.6%
Child Exploitation	13.6%
Other	2.6%

Table 2 presents a summary of descriptive statistics from all 302 cases in the sample. The data largely track national average federal case statistics, but there are some deviations worth noting. The ethnic makeup of the sample skews heavily away from Hispanic defendants, who made up 50 percent of federal defendants in 2021 but constitute just 16.7 percent of the sample

here.²⁰⁸ That deviation is very likely due to purposeful case selection choices: because the most commonly prosecuted immigration offense—illegal reentry to the United States under 8 U.S.C. § 1326—typically involves circumstances that heavily constrain judicial discretion (and thus are not suitable cases in which to study how mitigation impacts judicial decision-making), I removed those cases from the sample.²⁰⁹ Because those cases heavily overrepresent Hispanic defendants, their exclusion likely drives down the number of Hispanic defendants in the sample.

Unsurprisingly, then, the distribution of various crime types in my sample also differs from national data. Immigration offenses constitute nearly 30 percent of federal criminal cases, which are absent from my sample.²¹⁰ Some of that absence was filled by fraud and theft related cases (about 27.8 percent of cases in my sample and 10 percent of cases nationally) and child exploitation cases (about 13.6 percent of my sample and 4 percent nationally).²¹¹ Other crime types tracked the national average closely. For example, firearms cases were 14 percent of the national total in 2021 and about 18 percent of my sample.²¹²

Other statistics track national averages closely as well: 88 percent of the defendants in my sample were men, compared to 86.7 percent among the national average in 2021.²¹³ Likewise, 54 percent of the judges in my sample were appointed by Democrats and 46 percent by Republicans, tracking the national proportion of federal judges by party.²¹⁴

E. Baseline Relationships Between Mitigation and Sentencing

Before addressing how potential areas of inequality interact with sentencing mitigation, we must understand the basic relationship between mitigation and sentencing. First, to examine whether presentation of offense or personal mitigation was associated with reduced sentences, I conducted a simple ordinary least squares (OLS) regression²¹⁵ with the sentence (as the

208. U.S. SENT'G COMM'N, FISCAL YEAR 2021 OVERVIEW OF FEDERAL CRIMINAL CASES 6 (2022), https://www.ussc.gov/sites/default/files/pdf/research-and-publications/research-publications/2022/FY21_Overview_Federal_Criminal_Cases.pdf [<https://perma.cc/9RLU-AQWT>].

209. *See supra* note 148.

210. U.S. SENT'G COMM'N, *supra* note 208, at 11.

211. *See id.*

212. *Id.*

213. *Id.* at 6.

214. *See* John Gramlich, *How Biden Compares with Other Recent Presidents in Appointing Federal Judges*, PEW RSCH. CTR. (Jan. 9, 2025), <https://www.pewresearch.org/short-reads/2025/01/09/how-biden-compares-with-other-recent-presidents-in-appointing-federal-judges> [<https://perma.cc/QR6B-8YQF>] (providing a visualization of what percentage of currently active federal judges were appointed by each president and that president's political party, indicating that, as of January 7, 2025, and after a flurry of Biden administration appointments, 57 percent of active federal judges were appointed by a Democrat, and 42 percent were appointed by a Republican).

215. Regression is the primary tool by which empirical researchers seek to make group comparisons and draw causal conclusions from nonexperimental, observational data like those

percentage of the midpoint of the Guidelines range) as the dependent variable and the two *categories* of mitigation (offense and personal) as independent predictor variables. The unit for those predictor variables was 1,000 words of mitigation—that is, the regression measures how much a 1,000-word change in the amount of mitigation presented affects the predicted sentence. I also included a number of control variables from the Sentencing Commission data, including the crime type, the defendant’s criminal history,²¹⁶ detention status,²¹⁷ age,²¹⁸ and gender.²¹⁹ Table 3 presents the results of that regression.

Table 3: Regression Estimates for Categories of Mitigation

<i>Mitigation Categories</i>	
Offense	0.031 (0.027)
Personal	-0.132*** (0.027)
Number of Observations	302
Adjusted R Square	0.225

Table 3 Notes: Dependent variable for all models is the sentence of incarceration imposed as a percentage of the midpoint of the Guidelines range. The unit of change for each of the mitigation categories is 1,000 words of mitigation. Standard errors in parentheses. +, *, **, and *** represent significance at the 10 percent, 5 percent, 1 percent, and 0.1 percent level, respectively. Additional control variables are crime type, defendant’s total criminal history points, defendant’s detention status, defendant’s age, and defendant’s gender.

The overall model was highly significant,²²⁰ with increases in personal mitigation strongly associated with reduced sentences²²¹ and changes in

I describe here. See ADAM CHILTON & KYLE ROZEMA, TRIAL BY NUMBERS 60 (2024). OLS regression is a common form of regression used in empirical legal research that “assumes a linear relationship between the variables of interest.” *Id.* at 68.

216. This variable is the total number of criminal history points applied at sentencing under the Guidelines. See U.S. SENT’G GUIDELINES MANUAL § 4A1.1 (U.S. SENT’G COMM’N 2024) (describing the process for calculating criminal history points). The variable from the Commission’s individual datafiles is “TOTCHPTS.” See VARIABLE CODEBOOK FOR INDIVIDUAL DATAFILE, *supra* note 190, at 60 (defining the TOTCHPTS variable).

217. I coded the defendant’s detention status as a dummy variable that takes the value of 1 if the defendant was held in custody prior to sentencing, and 0 if not.

218. This variable was measured as the defendant’s age in years at the time of sentencing. VARIABLE CODEBOOK FOR INDIVIDUAL DATAFILE, *supra* note 190, at 14 (describing the “AGE” variable in the individual datafiles).

219. I coded the defendant’s gender as a dummy variable that takes the value of 1 if the defendant was female and 0 if male.

220. $F(2, 298) = 45.952$, $p < 0.001$. The adjusted R^2 of the model was .225.

221. The correlation coefficient for personal mitigation was -0.132; $p < 0.001$.

offense mitigation not significantly associated with changes in sentences.²²² Personal mitigation has a regression coefficient of -0.132, meaning that for each additional 1,000 words of personal mitigation added to a defendant's sentencing memorandum, the defendant's sentence, on average, is about 13 percent lower.²²³ This finding is in line with the prior literature indicating that increased presentations of personal mitigation tend to correlate with reduced sentences as compared to presentations of offense mitigation.²²⁴

Next, I tested the relationship between individual mitigating factors (e.g., historical trauma, character, etc.) and the sentence imposed. In model 1, laid out in Table 4, I present the regression results, regressing the dependent variable of the sentence imposed (as a percentage of the midpoint of the Guidelines range) on the various mitigating factors presented in the sentencing memoranda. The results largely track findings from the prior literature. Character, collateral consequences, and evidence-supported health mitigation are all highly significant predictors of reduced sentences, as I have reported in related work.²²⁵ Likewise, expressions of remorse that are unsupported by evidence were associated with *increased* sentences—that is, when defendants make bare expressions of remorse without any evidence demonstrating that remorse, sentences tend to increase.²²⁶ Relatedly, increased presentations of mitigation that focused on *minimizing* the harm that occurred to victims was also highly predictive of increased sentences. Both findings are in line with prior work²²⁷ and are relatively intuitive: expressions interpreted as flatly minimizing the harm of the crime may be met with skepticism from judges.

222. The correlation coefficient for offense mitigation was 0.031; $p = 0.264$.

223. I note here that because my dependent variable is the defendant's sentence as compared with the midpoint of the sentencing Guidelines range, what I mean by "13 percent lower" is that the defendant's sentence is 13 percent lower compared to the midpoint of the Guidelines range than it would be without the mitigation.

224. See, e.g., Meixner, *supra* note 31, at 1444–45; Robinson, Jackowitz & Bartels, *supra* note 31, at 782–83 tbls. 5–6 (describing, in an experimental setting, various "extralegal punishment factors" that are similar to personal mitigation and contributed to reduced culpability judgments).

225. Meixner, *supra* note 31, at 1447–48. I note here that there are two main differences between the results I report here in model 1 and the prior work reported in Meixner, *supra* note 31. First, in that prior work, because I did not have a collaboration with the USSC, I had to determine the Guidelines range based on a review of the sentencing memoranda or a sentencing transcript, if one was available. See *id.* at 1435. But, as I reported in that prior work, it is not always possible to determine the Guidelines range from sentencing memoranda with perfect accuracy. *Id.* In the current project, however, I had access—from the USSC data—to the Guidelines range as calculated by the court. In that way, the data reported here are more accurate than in Meixner, *supra* note 31. Second, model 1 reported here contains additional control variables that I now have access to through the USSC data (defendant's total criminal history points, defendant's detention status, defendant's age, and defendant's gender). None of these materially influence the final results, however; I report largely the same findings in model 1 as I reported in Meixner, *supra* note 31.

226. *Id.* at 1447. I note, however, that this effect was only significant at the $p < 0.10$ confidence level.

227. *Id.*

Table 4: Regression Estimates for Sentence Length

Model	(1)	(2)	(3)	(4)
<i>Mitigating Factors</i>				
Relative Seriousness	0.025 (0.032)	0.023 (0.032)	0.023 (0.032)	0.026 (0.032)
Relative Culpability	-0.077 (0.055)	-0.065 (0.054)	-0.069 (0.055)	-0.071 (0.055)
Victim Harm—Minimizing	0.156*** (0.02111)	0.151*** (0.021)	0.150*** (0.021)	0.149*** (0.021)
Victim Harm—Acknowledging	0.230+ (0.1258)	0.252* (0.1247)	0.252* (0.1248)	0.264* (0.1254)
Remorse—Supported	0.074 (0.175)	0.096 (0.172)	0.115 (0.174)	0.114 (0.175)
Remorse—Unsupported	0.539* (0.229)	0.505* (0.225)	0.500* (0.225)	0.513* (0.226)
Historical Trauma	-0.099 (0.065)	-0.123+ (0.065)	-0.122+ (0.065)	-0.115+ (0.065)
Character	-0.117** (0.044)	-0.102* (0.044)	-0.104** (0.044)	-0.098* (0.044)
General Family Background	-0.052 (0.183)	-0.083 (0.183)	-0.076 (0.183)	-0.093 (0.184)
Collateral Consequences	-0.413*** (0.127)	-0.453*** (0.126)	-0.445*** (0.127)	-0.431*** (0.128)
Health—Supported	-0.175*** (0.049)	-0.157*** (0.049)	-0.157*** (0.049)	-0.155*** (0.049)
Health—Unsupported	0.068 (0.260)	0.147 (0.260)	0.135 (0.261)	0.142 (0.262)
Age	0.120 (0.200)	0.094 (0.197)	0.087 (0.198)	0.077 (0.198)
<i>Race</i>				
Black		0.079+ (0.048)	0.075 (0.049)	0.076 (0.049)
Hispanic		0.173** (0.060)	0.170** (0.0600)	0.170** (0.061)
<i>Democrat</i>			0.029 (0.038)	0.028 (0.038)
<i>Attorney Type</i>				
Retained				-0.014 (0.050)
CJA Panel-Appointed				0.041 (0.045)
Number of Observations	302	302	302	302
Adjusted R Square	0.351	0.370	0.369	0.367

Table 4 Notes: The dependent variable for all models is the sentence of incarceration imposed, as a percentage of the midpoint of the Guidelines range. The unit of change for each of the mitigating factors is 1,000 words of mitigation. Standard errors are in parentheses. +, *, **, and *** represent significance at the 10 percent, 5 percent, 1 percent, and 0.1 percent level, respectively. Additional control variables are crime type, defendant's total criminal history points, defendant's detention status, defendant's age, and defendant's gender.

*F. Potential Sources of Inequality:
Race, Politics, and Counsel*

Next, I turn to the roles of three variables potentially giving rise to inequality in mitigation: the defendant's race, judicial politics, and the type of defense counsel. One way to conceptualize the question of whether these variables impact the effectiveness of sentencing mitigation is to ask: if we control for the defendant's race, judicial politics, and the type of defense counsel, do the effects seen in the prior regressions hold true? In models 2, 3, and 4 in Table 4, I report the results of regressions examining that question.

Models 2, 3, and 4 incorporate additional dummy-coded variables for the defendant's race (with White as the reference category), the political party of the president who appointed the judge (with Democrat as the reference category), and the type of defense counsel (with federal defenders as the reference category), respectively. As can be seen in Table 4, when holding presentation of mitigation constant, both Black defendants and Hispanic defendants are more likely to receive longer sentences when compared with White defendants, though this effect is only significant at the $p < 0.1$ level for Black defendants. This racial disparity is discouraging, though not surprising—as discussed in Part I.B, race is a source of inequality in sentencing generally.

More encouraging, however, is that the apparent importance of mitigation persists even when controlling for race. All of the same statistically significant categories of mitigation in model 1 remain significant in model 2, indicating that mitigation is a robust predictor of reduced sentences, regardless of its relationship with the defendant's race.

Models 3 and 4 tell similar stories. In model 3, the politics of the party appointing the sentencing judge do not significantly predict the sentencing outcome. Moreover, as with race, when judicial politics are controlled for, there is no change in the mitigating factors that significantly predict reduced sentences. Model 4 is much the same: the category of attorney that represents a defendant does not itself predict the sentencing outcome, and controlling for attorney type does not impact the kinds of mitigation that significantly predict reduced sentences.

All of the results imply that the potential benefit of mitigation is robust, even when controlling for various factors that might mediate the impact of mitigation—an important point. But they do not tell us much about how these potential sources of inequality might affect the *extent* of that benefit. In other words, mitigation may be a rising tide that lifts all boats, but does it lift some boats more than others? In the following subsections, I explore that

question by partitioning the data across the various potential sources of inequality—race, politics, and type of counsel.²²⁸

1. Race

To better understand how race might influence the effectiveness of mitigation, I first collapsed all of the cases in my sample into two groups: White defendants and Black/Hispanic defendants. I did this for two reasons: (1) the existing literature on the influence of the defendant's race on sentencing decisions largely indicates that Hispanic and Black defendants experience similar disparities at sentencing; and (2) because the sample size here is relatively small, especially among Hispanic defendants, I collapsed to increase the sample size in each comparison group to maximize the ability to find true effects.

First, I conducted a simple regression, partitioned by racial group, with the sentence (as the percentage of the midpoint of the Guidelines range) as the dependent variable, and the two categories of mitigation (offense and personal) as independent predictor variables (Table 5). As I found when running a similar regression not partitioned by race,²²⁹ the overall model was highly significant,²³⁰ with increases in personal mitigation strongly associated with reduced sentences²³¹ and changes in offense mitigation not significantly associated with changes in sentences.²³² Indeed, the coefficients are slightly smaller for Black/Hispanic defendants, indicating that mitigation was associated with slightly greater reductions in sentences for Black/Hispanic defendants than for White defendants. To test whether those differences were significant, I calculated the z-statistic for each regression coefficient and then calculated whether those statistics differed significantly from each other.²³³ For Table 5, there were no significant differences, implying that—as a statistical matter—White and

228. Examining “whether an empirical relationship or causal effect that is estimated within two independent samples is equivalent” is “[a] frequent task in criminological research,” and a common method of empirically making that comparison is to partition the regression into two groups and then statistically test for significant differences between regression coefficients across groups. See, e.g., Raymond Paternoster, Robert Brame, Paul Mazerolle & Alex Piquero, *Using the Correct Statistical Test for the Equality of Regression Coefficients*, 36 CRIMINOLOGY 859, 859 (1998); Darrell Steffensmeier & Stephen Demuth, *Ethnicity and Judges' Sentencing Decisions: Hispanic-Black-White Comparisons*, 39 CRIMINOLOGY 145, 160 (2001) (describing the partition process and conducting analysis); Spohn & Holleran, *supra* note 106, at 292 tbl. 2 (same); Cassia Spohn & Lisa L. Sample, *The Dangerous Drug Offender in Federal Court: Intersections of Race, Ethnicity, and Culpability*, 59 CRIME & DELINQ. 3, 16 (2013) (same).

229. See *supra* notes 220–25 and accompanying text.

230. For both racial groups, $p < 0.001$.

231. For both racial groups, $p < 0.001$.

232. For White, $p = 0.206$, for Black/Hispanic, $p = 0.569$.

233. For a description of this method, see Paternoster, *supra* note 228, at 861–64. I note that, in addition to conducting an analysis by this partitioning method, I also tested for race effects by examining interactions between race and the different types of mitigation, and I found no material differences between the partition analyses reported here and those interactions.

Black/Hispanic defendants benefitted equally from offense and personal mitigation as a whole.

*Table 5: Regression Estimates for Sentence Length;
Mitigation Categories Separated by Race*

	White	Black/Hispanic
<i>Mitigation Categories</i>		
Offense	0.049 (0.038)	0.025 (0.044)
Personal	-0.124*** (0.029)	-0.148*** (0.037)
Number of Observations	127	159
Adjusted R Square	0.244	0.241

Table 5 Notes: The dependent variable for all models is the sentence of incarceration imposed, as a percentage of the midpoint of the Guidelines range. The unit of change for each of the mitigating factors is 1,000 words of mitigation. Standard errors are in parentheses. +, *, **, and *** represent significance at the 10 percent, 5 percent, 1 percent, and 0.1 percent level, respectively. Italics indicate significant difference between regression coefficients across groups. Additional control variables are crime type, defendant's total criminal history points, defendant's detention status, defendant's age, and defendant's gender.

These analyses are consistent with the theory that broad categories of mitigation, when presented to the judge, are similarly effective across racial groups. But do defense attorneys present mitigation equally across race in their sentencing memoranda? Figures 1–3 depict the grand total amount of mitigation as well as the amount of personal and offense mitigation split out by the defendant's race. When simply comparing means between the racial categories, attorneys presented significantly more mitigation as a whole for White defendants than for Black/Hispanic defendants.²³⁴ Attorneys also presented more offense and personal mitigation for White defendants than for Black/Hispanic defendants, although those differences did not reach statistical significance at the .05 confidence level.²³⁵ But critically, all of those effects disappear when measured in a regression controlling for other case characteristics (crime type, defendant's total criminal history points, defendant's detention status, defendant's age, and defendant's gender).²³⁶

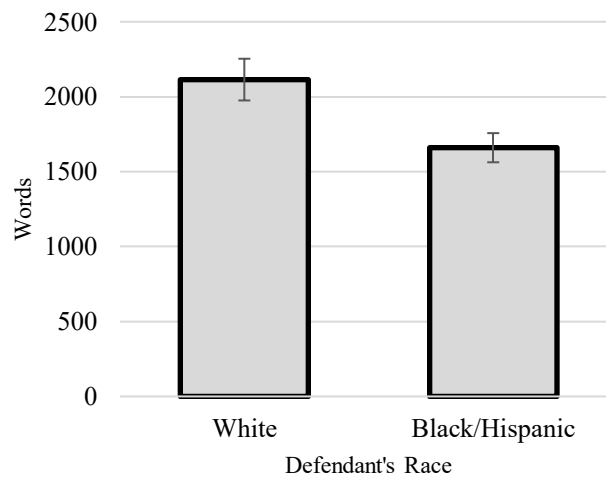
234. $t(284) = 2.75, p = 0.06$.

235. For personal mitigation, $t(284) = 1.91, p = 0.057$; for offense mitigation, $t(284) = 1.64, p = 0.102$.

236. I ran three separate OLS regressions with the amount of offense mitigation presented as the dependent variable in the first, the amount of personal mitigation presented as the dependent variable in the second, and the amount of total mitigation presented as the

When doing so, the defendant's race does not significantly predict the amount of mitigation presented.²³⁷ What causes this discrepancy? One plausible explanation relates to the defendant's detention status: a far greater percentage of Black and Hispanic defendants in the sample are detained as compared to White defendants,²³⁸ and the defendant's detention status strongly predicts the amount of mitigation presented.²³⁹ This is intuitive: defendants who are in custody are likely less able to identify mitigation and track down supporting evidence for it, leading to less mitigation presented in the sentencing memoranda.

Figure 1. Total Mitigation by Race



dependent variable in the third. For each regression, I included as predictor variables the defendant's race (White vs. non-White), crime type, defendant's total criminal history points, defendant's detention status, defendant's age, and defendant's gender.

237. For total mitigation, $p = 0.602$; for personal mitigation, $p = 0.451$; for offense mitigation, $p = 0.534$.

238. In total, 77 percent of Black defendants and 78 percent of Hispanic defendants were detained pretrial in my sample, as compared to just 55 percent of White defendants.

239. For total mitigation, $p = 0.001$; for personal mitigation, $p = 0.004$; for offense mitigation, $p = 0.016$.

Figure 2. Personal Mitigation by Race

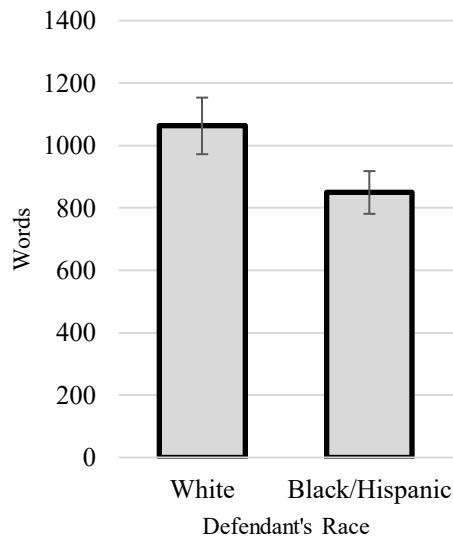
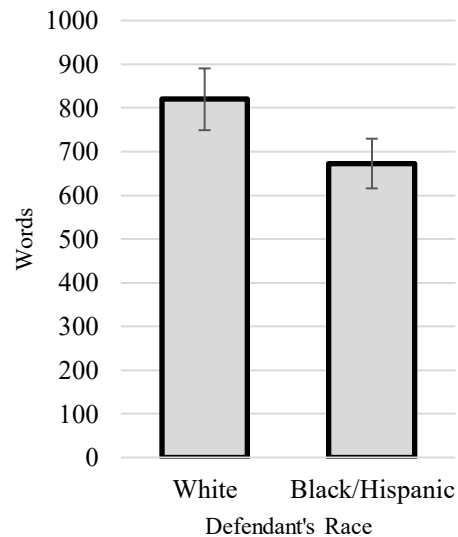


Figure 3. Offense Mitigation by Race



All of the above analyses relate only to the broad categories of offense and personal mitigation. But we are also interested in whether there are racial differences across the various, more granular mitigating factors. In Table 6, I regress the dependent variable of the sentence imposed on the various types of mitigating factors, partitioned by racial group. Although the relatively small sample certainly limits the conclusions we can draw (as discussed in more detail below), several important characteristics stand out. First, some of the categories of mitigation that significantly predicted reduced sentences across the entire sample of cases—character, collateral consequences, and health-related mitigation when supported by evidence—are not significantly predictive of reduced sentences for White defendants only. Those variables do, however, largely remain significant for Black/Hispanic defendants (at varying levels of significance), implying that—at least across certain important categories of mitigation—non-White defendants may receive a greater benefit of mitigation. For example, increases in evidence-supported health mitigation predict a three-times greater reduction of sentence for Black/Hispanic defendants than for White defendants: an additional 1,000 words of this sort of mitigation predicts a 30 percent reduction in sentence for Black/Hispanic defendants and just a 9 percent reduction in sentence for White defendants. Admittedly, it is difficult to draw clear causal conclusions across these differences. But the overall implication is important: the data are at least consistent with the hypothesis that Black/Hispanic defendants benefit at least as much—and possibly more in certain circumstances—from certain forms of personal mitigation as White defendants.

As with the broader categories of mitigation, I also explored differences in the *amount* of mitigation that attorneys presented when parsed across specific mitigating factors. For the most part, there were not significant differences by race, but there was one important exception: attorneys for White defendants presented significantly more evidence-based health mitigation than for Black/Hispanic defendants—an important finding, given the apparent relative importance of that type of mitigation.²⁴⁰ I explore the implications of this in more detail in the next part below.

240. $t(284) = 3.07, p = 0.02$. This effect holds true even when using a regression analysis controlling for other case characteristics (crime type, defendant's total criminal history points, defendant's detention status, defendant's age, and defendant's gender). $p = 0.013$. In simple means, attorneys presented an average of 286 words of evidence-supported health mitigation for White defendants and 136 words for Black and Hispanic defendants.

*Table 6: Regression Estimates for Sentence Length;
Individual Mitigating Arguments Separated by Race*

	White	Black/Hispanic
<i>Mitigating Arguments</i>		
Relative Seriousness	0.088 (0.049)	-0.006 (0.044)
Relative Culpability	-0.093 (0.104)	-0.057 (0.073)
<i>Victim Harm—Minimizing</i>	<i>0.0283</i> (0.0478)	<i>0.1941***</i> (0.0244)
<i>Victim Harm—Acknowledging</i>	<i>0.3596*</i> (0.1704)	<i>-0.7488</i> (0.0540)
Remorse—Supported	0.315 (0.258)	-0.152 (0.289)
Remorse—Unsupported	0.860* (0.425)	0.557* (0.267)
Historical Trauma	-0.151 (0.106)	-0.015 (0.087)
Character	-0.092 (0.061)	-0.162* (0.067)
General Family Background	-0.148 (0.327)	-0.177 (0.236)
Collateral Consequences	-0.255 (0.240)	-0.480** (0.156)
<i>Health—Supported</i>	<i>-0.094</i> (0.068)	<i>-0.305***</i> (0.077)
Health—Unsupported	0.008 (0.338)	0.516 (0.421)
Age	-0.427 (0.394)	0.270 (0.236)
Number of Observations	127	159
Adjusted R Square	0.267	0.457

Table 6 Notes: The dependent variable for all models is the sentence of incarceration imposed, as a percentage of the midpoint of the Guidelines range. The unit of change for each of the mitigating factors is 1,000 words of mitigation. Standard errors are in parentheses. +, *, **, and *** represent significance at the 10 percent, 5 percent, 1 percent, and 0.1 percent level, respectively. Italics indicate significant difference between regression coefficients across groups. Additional control variables are crime type, defendant's total criminal history points, defendant's detention status, defendant's age, and defendant's gender.

2. Politics

To examine how the sentencing judge's political background might influence the effectiveness of mitigation, I first conducted a regression, partitioned by the party appointing the sentencing judge, with the sentence as the dependent variable and the two categories of mitigation (offense and personal) as independent predictor variables (Table 7). As with race, the overall model was highly significant,²⁴¹ with increases in personal mitigation strongly associated with reduced sentences²⁴² and changes in offense mitigation not significantly associated with changes in sentences.²⁴³ And, as with race, there were no significant differences based on judicial politics, again implying that defendants presenting mitigation benefitted from offense and personal mitigation as a whole, regardless of whether the judge was appointed by a Democrat or a Republican.

*Table 7: Regression Estimates for Sentence Length;
Mitigation Categories Separated by Judicial Politics*

	Democrat	Republican
<i>Mitigation Categories</i>		
Offense	0.020 (0.038)	0.050 (0.040)
Personal	-0.165*** (0.035)	-0.117*** (0.029)
Number of Observations	163	137
Adjusted R Square	0.244	0.279

Table 7 Notes: The dependent variable for all models is the sentence of incarceration imposed, as a percentage of the midpoint of the Guidelines range. The unit of change for each of the mitigating factors is 1,000 words of mitigation. Standard errors are in parentheses. +, *, **, and *** represent significance at the 10 percent, 5 percent, 1 percent, and 0.1 percent level, respectively. Italics indicate significant difference between regression coefficients across groups. Additional control variables are crime type, defendant's total criminal history points, defendant's detention status, defendant's age, and defendant's gender.

The story gets more complex, however, when examining the individual mitigating factors. Somewhat similar to the trends for race, two of the three primary kinds of personal mitigation that significantly predicted reduced sentences across the entire sample—character and collateral consequences—only did so when presented to Democrat-appointed judges, as depicted in Table 8. The differences in those coefficients between Democrat- and

241. For both parties, $p < 0.001$.

242. For both parties, $p < 0.001$.

243. For Democrats, $p = 0.591$; for Republicans, $p = 0.207$.

Republican-appointed judges were significant.²⁴⁴ Those differences were stark: a 1,000 word increase in character-related mitigation predicts a 16.9 percent reduction in sentence when presented to a Democrat-appointed judge, but only an 8.9 percent reduction when presented to a Republican-appointed judge. Likewise for collateral consequences, where increases in mitigation predict more than three times the amount of sentencing reduction when the judge is Democratic as compared to Republican. And evidence-supported health mitigation was likewise more strongly associated with reduced sentences when presented to Democrat-appointed judges, though that difference did not reach statistical significance across this relatively small sample. On the whole, the data are consistent with a hypothesis that defendants may find a more receptive audience for certain mitigating arguments in Democrat-appointed judges than in Republican-appointed judges.²⁴⁵

As with race, I also examined whether there were any differences in the *amount* of mitigation presented depending on the appointing party of the judges—both at the level of categories of mitigation and individual mitigating factors. There were no significant differences—attorneys presented roughly similar amounts of all types of mitigation no matter the judge’s political background. In short, if there are differences in how receptive judges are to mitigation based on politics, attorneys do not appear to be sensitive to that difference in their presentations of mitigation.

244. $p < 0.05$ for both categories.

245. I do note, however, that there is one apparent exception to this. I found that across all judges, mitigation that minimizes the harm done to victims tended to be aggravating rather than mitigating. Presenting more of this type of mitigation predicted an increased sentence, rather than a decreased one. *See supra* Table 4. This effect was much greater among Democrat-appointed judges than Republican-appointed ones. *See infra* Table 8. I approach this result with caution, however, because mitigation minimizing victim harm is relatively rare in the sample: nearly 90 percent of the memos do not have any of this sort of mitigation at all. Thus, it is a relatively noisy measure, making me hesitant to draw substantial conclusions from it.

Table 8: Regression Estimates for Sentence Length; Individual Mitigating Arguments Separated by Judicial Politics

	Democrat	Republican
<i>Mitigating Arguments</i>		
Relative Seriousness	-0.018 (0.042)	0.072 (0.055)
Relative Culpability	-0.100 (0.071)	0.048 (0.099)
<i>Victim Harm—Minimizing</i>	<i>0.1775***</i> (0.0243)	<i>0.0093</i> (0.0514)
Victim Harm—Acknowledging	0.3327 ⁺ (0.1784)	0.0041 (0.2076)
Remorse—Supported	0.414 (0.290)	-0.045 (0.248)
Remorse—Unsupported	0.687* (0.302)	0.416 (0.351)
Historical Trauma	-0.079 (0.104)	-0.080 (0.083)
<i>Character</i>	<i>-0.169**</i> (0.066)	<i>-0.089</i> (0.064)
General Family Background	-0.067 (0.260)	-0.072 (0.276)
<i>Collateral Consequences</i>	<i>-0.522**</i> (0.198)	<i>-0.168</i> (0.176)
Health—Supported	-0.257*** (0.067)	-0.178* (0.077)
Health—Unsupported	-0.404 (0.361)	0.570 (0.370)
Age	0.270 (0.261)	-0.427 (0.342)
Number of Observations	163	137
Adjusted R Square	0.433	0.457

Table 8 Notes: The dependent variable for all models is the sentence of incarceration imposed, as a percentage of the midpoint of the Guidelines range. The unit of change for each of the mitigating factors is 1,000 words of mitigation. Standard errors are in parentheses. ⁺, *, **, and *** represent significance at the 10 percent, 5 percent, 1 percent, and 0.1 percent level, respectively. Italics indicate significant difference between regression coefficients across groups. Additional control variables are crime type, defendant's total criminal history points, defendant's detention status, defendant's age, and defendant's gender.

3. Counsel Type

Table 9 reports the results of a regression partitioned by the type of defense counsel (federal defender, CJA panel-appointed attorney, or retained attorney), with the sentence as the dependent variable and the two categories of mitigation (offense and personal) as independent predictor variables. As with race and politics, the overall model was highly significant,²⁴⁶ with increases in personal mitigation strongly associated with reduced sentences,²⁴⁷ changes in offense mitigation not significantly associated with changes in sentencing, and no significant differences across coefficients based on the type of counsel. No matter the type of counsel, offense mitigation is not associated with reduced sentences, and personal mitigation is highly associated with reduced sentences.

*Table 9: Regression Estimates for Sentence Length;
Mitigation Categories Separated by Defense Attorney Type*

	Federal Defender	CJA Panel- Appointed	Retained
<i>Mitigation Categories</i>			
Offense	0.054 (0.046)	0.027 (0.056)	0.026 (0.047)
Personal	-0.090* (0.044)	-0.161*** (0.046)	-0.128*** (0.037)
Number of Observations	117	105	80
Adjusted R Square	0.249	0.231	0.192

Table 9 Notes: The dependent variable for all models is the sentence of incarceration imposed, as a percentage of the midpoint of the Guidelines range. Standard errors are in parentheses. +, *, **, and *** represent significance at the 10 percent, 5 percent, 1 percent, and 0.1 percent level, respectively. Additional control variables are crime type, defendant's total criminal history points, defendant's detention status, defendant's age, and defendant's gender.

But that is not the only story. Perhaps personal mitigation is effective no matter the type of attorney presenting it.²⁴⁸ Does the type of attorney affect *how much* of it is presented? To examine this, I regressed the dependent variable of the amount of personal mitigation presented (in words) on the type of defense counsel (with federal defenders as the reference category),

²⁴⁶. For all types, $p < 0.01$.

²⁴⁷. For all types, $p < 0.01$.

²⁴⁸. I note here that, although cases handled by CJA panel-appointed attorneys have the strongest relationship between presentation of personal mitigation and reduced sentences, that difference is not significant (either between panel-appointed attorneys and federal defenders, or between panel-appointed attorneys and retained attorneys).

retaining the control variables used in the prior regressions. Controlling for other factors, CJA panel-appointed attorneys presented about 355 fewer words of personal mitigation than federal defenders, whereas there was no significant difference between federal defenders and retained attorneys. In terms of simple means, CJA panel-appointed attorneys presented an average of 639 words of personal mitigation, as compared to 1,042 words for federal defenders and 1,167 words for retained attorneys.

*Table 10: Regression Estimates for
Personal Mitigation Presented*

<i>Attorney Type</i>	
CJA Panel-Appointed	-355.89** (124.59)
Retained	22.6 (135.82)
Number of Observations	302
Adjusted R Square	0.091

Table 10 Notes: The dependent variable is the amount of personal mitigation presented, in words. Standard errors are in parentheses. +, *, **, and *** represent significance at the 10 percent, 5 percent, 1 percent, and 0.1 percent level, respectively. Additional control variables are crime type, defendant's total criminal history points, defendant's detention status, defendant's age, and defendant's gender.

I note one challenge in interpreting my counsel-type results. Defendants are not, of course, randomly assigned to a federal defender, a CJA panel-appointed attorney, or a retained attorney. Defendants typically make the choice to hire a retained attorney, meaning the population of defendants with retained attorneys may differ from other populations in ways that might affect mitigation. They might have a more compelling background of mitigation or, perhaps more likely, greater means to document and prove their mitigating circumstances. Those defendant-side differences may explain some of the difference in presentations between retained attorneys and CJA panel-appointed attorneys.

The potential selection effects between federal defenders and CJA panel-appointed attorneys are not quite so stark but still worth considering. As noted above, indigent defendants are typically provided a CJA panel-appointed attorney if the federal defender's office has a conflict (most commonly in a multiple-defendant case) or is otherwise unable to take their case (for example, due to staffing limitations). Although the decision of which defendants to represent is typically made by public defender's offices, I am not aware of any research indicating that this dynamic results in systematic assignments. But it is possible that federal defender's offices, for example, choose to represent clients with more substantial mitigation present, which could explain some of the difference between the amount of

mitigation presented by federal defendants and CJA panel-appointed attorneys (as opposed to the quality of the individual attorneys themselves). There are good reasons to doubt this level of systematic selection bias, as I describe in more detail below,²⁴⁹ but we must consider it as a possibility.

G. *The Role of Individual Attorneys*

All of the methods described above were designed to assess whether certain *systematic* characteristics of defendants (e.g., race) or other players in the litigation (e.g., political affiliation of the judge or prosecutor, type of defense attorney) interact with mitigation; that is, whether they may lead to systematic inequalities, helping some defendants and hurting others. But there is a separate question raised by the results here: if defendants for whom more sentencing mitigation is presented tend to receive lower sentences as compared to other defendants, is that fact related to the *quality of lawyering* the defendant receives (i.e., a wise decision to present robust mitigation), or does it have to do more with the *defendant's case itself* (i.e., some defendants simply have compelling mitigation to present and some do not)? In other words, is the driver of the effect the *lawyer* or the *client*?

My national, hand-coded dataset is not well suited to answer this question. To determine whether individual *defendants* or individual *attorneys* are the driver of mitigation effects, we must look at multiple cases involving either the same defendant or the same attorney to examine whether the identity of the individual defendant or attorney is predictive of robust presentations of mitigation. Identifying multiple cases involving the same defendant would be challenging, as relatively few individuals are prosecuted for multiple federal offenses. Defense attorneys, in contrast, are often repeat players, sometimes handling hundreds of cases over the course of a career. But because I developed the above-described national dataset to include a representative sample of all U.S. jurisdictions,²⁵⁰ there are only a handful of cases in any given jurisdiction, and so there are no cases involving repeat attorneys.

Thus, I designed a procedure to examine a small sample of new cases involving repeat defense attorneys to try to provide an initial look²⁵¹ at whether the attorney's performance drives the effect of mitigation. I began by identifying two contrasting sets of attorneys from the full dataset of 302 cases. Because my data indicate that substantial presentations of personal mitigation correlate with reduced sentences (whereas increased presentations of offense mitigation do not), I sought to identify attorneys who made either robust or minimal presentations of personal mitigation in the original sample of 302 cases. I randomly selected four attorneys who presented substantial

249. See *infra* note 273 and accompanying text.

250. I briefly note one caveat here: there are some federal districts that are not included in the sample because they have a practice of either filing sentencing memoranda under seal or off the record directly with the district judge. See Meixner, *supra* note 31, at 1436 n.217.

251. I emphasize here that this is only an initial look at this question. To draw firmer conclusions, more research—with a greater sample size—will be necessary.

personal mitigation in their cases from that sample (the “thorough group”) and four who presented minimal mitigation (the “minimal group”). I defined the thorough group as attorneys who were in the top quartile in the amount of personal mitigation presented. Likewise, I defined the minimal group as presenting a quantity of personal mitigation in the bottom quartile of all attorneys. From these groupings, I used a random number generator to randomly select four attorneys from each group. After identifying the two groups of attorneys, I gathered an additional sample of eight cases per attorney, for a total of sixty-four cases, with thirty-two cases per group (I call this additional sample the “attorney sample”).²⁵² Once I gathered the attorney sample, I coded them using identical methods to the ones I used to code the main sample of cases, as described in Parts II.A–B.²⁵³

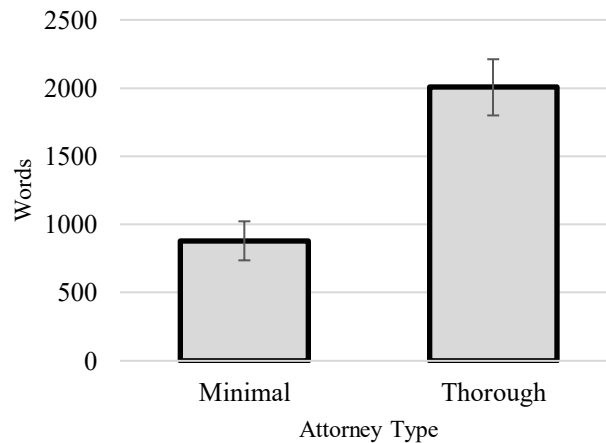
The results support the conclusion that some attorneys strongly emphasize mitigation across the gamut of their cases, whereas others do not. Figure 4 depicts the total amount of mitigation (both personal and offense) presented across all of the memoranda for both the thorough group and the minimal group. Attorneys in the thorough group—assigned to that group based on only a single memo from the initial sample—presented more than twice as

252. Why eight cases per attorney? Prior to determining the sample of cases to code, I conducted a power analysis, which is “the ability to discover an effect if it truly exists.” Erin M. Buchanan, *Statistical Power: How Not to Miss What’s Right in Front of You*, in THE CAMBRIDGE HANDBOOK OF RESEARCH METHODS AND STATISTICS FOR THE SOCIAL AND BEHAVIORAL SCIENCES 232 (John E. Edlund & Austin Lee Nichols eds., 2024). Based on (1) the substantial variation I observed in attorney mitigation practices in the original sample, (2) my own anecdotal experiences with mitigation practice during my time as a federal prosecutor, and (3) my conversations with various federal defenders about the variability in defense attorney quality, I anticipated a moderate-to-large effect size in comparisons between “thorough” and “minimal” attorneys. Assuming a moderate to large effect size of 0.75, I sought to obtain a power of 0.8 (meaning an 80 percent probability of detecting true effects in the sample) at a 0.05 level of significance—both of which are commonly used values. *Id.* at 234. Drawing from a power table (which calculates the necessary sample size at a given power level), I would need about twenty-nine cases in each of the “thorough” and “minimal” groups to reach 0.8 power. *Id.* at 242 tbl. 11.1. I increased that number to thirty-two cases in each group to allow for an even sample of eight cases for each attorney. In selecting cases for the attorney sample, I largely followed the same selection criteria as with the original sample of hand-coded cases. But I note one difference: to ensure that I could obtain enough cases for each attorney, I expanded the date range beyond the years 2015 to 2018. Cases in the attorney sample ranged from 2010 to 2022 and were randomly selected like the main sample.

253. Because the initial reliability check for the main sample yielded near perfect accuracy and was conducted using identical methods to the ones used to code the attorney sample, I did not conduct an additional intercoder reliability check for the attorney sample. *See* Meixner, *supra* note 31, at 1438 (describing reliability findings ranging between “almost perfect” and “substantial”).

much total mitigation as attorneys in the minimal group. This effect was highly significant.²⁵⁴

Figure 4. Individual Attorney Total Mitigation



This effect differed strongly across the two categories of mitigation. As seen in Figure 5, attorneys in the thorough group presented nearly five times more personal mitigation than attorneys in the minimal group across the sample of sixty-four cases—a highly significant effect.²⁵⁵ The two groups of attorneys did not differ, however, in the extent to which they presented offense mitigation (Figure 6).²⁵⁶ As discussed in more detail below, this indicates effective advocacy on the part of the thorough group. Whereas increased presentations of personal mitigation are strongly associated with reduced sentences, increased presentations of offense mitigation are not.²⁵⁷

Notably, these effects occur across a randomly selected sample of cases involving different defendants. Although we cannot presume that defendants are assigned to federal defenders randomly (as explored in more detail below), it is unlikely that nonrandom attorney assignment accounts for the enormous differences I observed between attorneys in the minimal group and the thorough group. In short, the data provide at least some evidence (though we should treat it with caution) that some attorneys are particularly adept at presenting mitigation, and some defendants who are lucky enough to draw those attorneys likely benefit. In contrast, other defendants may suffer from drawing minimal-type attorneys who are less likely to present substantial and compelling mitigation.

254. $t(62) = 4.46, p < 0.01$.

255. $t(62) = 5.65, p < 0.01$.

256. $t(62) = 0.251, p = 0.803$.

257. See *supra* notes 220–27 and accompanying text.

To be clear, I am not arguing that attorney presentations of mitigation are responsible for *all* benefits of mitigation. In addition to attorney presentations, judges learn a great deal about a defendant's background—including information that might be mitigating—from presentence reports, before the lawyers have uttered a word of sentencing advocacy.²⁵⁸ It is very likely that, even in the absence of any attorney participation at sentencing, judges would be affected by that information. I am also not arguing that more mitigation is necessarily better—there are undoubtedly some mitigation facts that do not take many words to convey. Instead, the point I hope to demonstrate here is that there appear to be differences in attorneys' mitigation presentations that likely go beyond differences in the cases to which attorneys are assigned. Accordingly, attorneys likely play at least some role in mitigation's ultimate impact on the outcome of cases.

Figure 5. Individual Attorney
Personal Mitigation

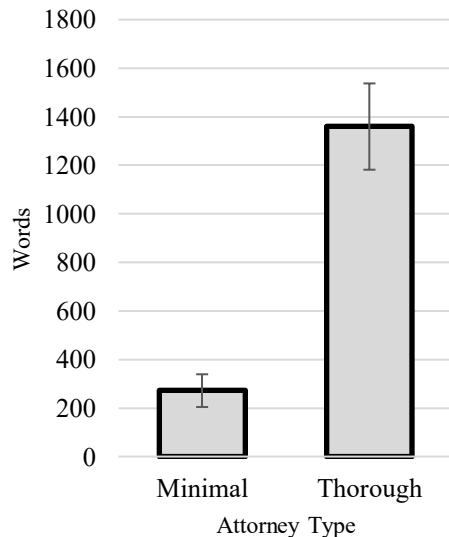
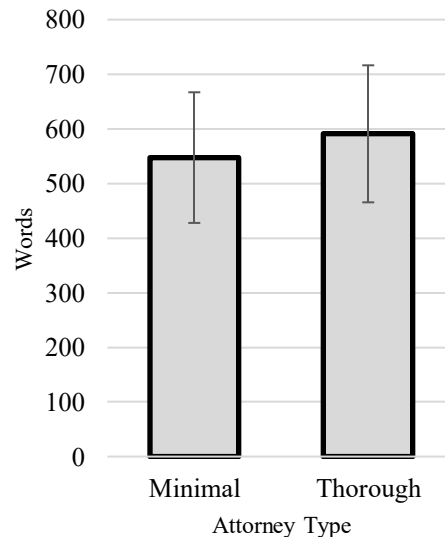


Figure 6. Individual Attorney
Offense Mitigation



III. DISCUSSION AND IMPLICATIONS FOR LEGAL REFORM

A. Summary of Main Findings

In this study, I report the first empirical examination of how potential sources of inequality affect the impact of mitigation at sentencing. In general, the data are encouraging. For the most part, I did not find evidence that race, politics, or the type of defense attorney have a substantial impact

258. See *supra* notes 90–91 and accompanying text.

on the effectiveness of mitigation. Though we must be cautious about drawing causal conclusions from this type of project (as discussed further below), the data at least suggest that mitigation may have some resistance to the kinds of biases that plague other components of the criminal justice system. The data here are complex, but I draw five main conclusions from them.

First, mitigation's association with reduced sentences is robust, even when controlling for a variety of other factors. Broadly, the data that I report here provide continued support for the conclusion that mitigation is compelling and associated with reduced sentences. Personal mitigation that humanizes defendants and places the crime within the context of the defendant's full background is associated with sharply reduced sentences. Moreover, particular types of personal mitigation—character, collateral consequences, and evidence-supported health mitigation—most strongly predict reduced sentences. And the data provide comfort that the benefits of mitigation are not tied up in demographic or case characteristics that might help some defendants and hurt others. Is mitigation beneficial only to wealthy defendants who can afford expensive private counsel or White defendants who might receive the benefit of the doubt from judges who look like them?

The data I report here suggest the answer is no. Certain types of mitigation—like character, collateral consequences, and evidence-supported health mitigation—are strongly associated with reduced sentences even when controlling for a number of case and defendant characteristics. Even holding constant the race and gender of the defendant, the political background of the judge, and the type of defense counsel, mitigation remains powerfully associated with reduced sentences.²⁵⁹ Likewise, when I control for other characteristics that are sometimes predictive of criminal sentences—the crime type, the defendant's criminal history, and the defendant's detention status—the effect of mitigation remains strongly significant. Although it is very difficult to draw causal conclusions from observational data like these, the fact that mitigation remains a strong predictor of reduced sentences, despite the inclusion of additional controls in the model, makes it more likely that reduced sentences are the *result* of mitigation and not some other factor that correlates with mitigation.

Moreover, the data suggest that mitigation's influence is powerful. Even when controlling for all of the variables described above, an additional 1,000 words of personal mitigation in a sentencing memorandum predicts an approximately 13 percent reduction in sentence. To put those numbers in even more concrete terms: the average midpoint of the Guidelines range in my sample was about 120 months, meaning that an additional 1,000 words of personal mitigation predicts about a sixteen-month reduction in sentence in a given case. Of course, many other variables help determine a defendant's sentence, so the data here are relatively noisy. It is impossible to know how much mitigation influences sentencing in any *individual* case. But the data

259. See *supra* Table 4.

are consistent with the conclusion that mitigation matters at sentencing and can be an important determinant of reducing harsh federal sentences.

Second, there is not strong evidence that judges are racially biased in their interpretation of mitigation. Mitigation helping all defendants achieve lower, more reasonable sentences sounds like a success story, but it certainly would be less of a success story if mitigation disproportionately helped White defendants compared to Black and Hispanic defendants. And the prior literature identifies clear racial disparities at sentencing in other contexts, although it is sometimes unclear whether those disparities result from sentencing itself or other parts of the criminal justice process.²⁶⁰

The data I report here, however, do not support the proposition that judges interpret mitigation any less positively for Black and Hispanic defendants than for White defendants. On a per-word basis, there was not a single type of personal mitigation that predicted a greater sentencing reduction for White defendants than for Black and Hispanic defendants. On the whole, a 1,000 word increase of personal mitigation predicted a 14.8 percent reduction in sentence for Black and Hispanic defendants and a 12.4 percent reduction for White defendants.²⁶¹ This suggests mitigation is functioning as it should: as an argument to the judge asking for a reasonable exercise of mercy not affected by the defendant's immutable characteristics. Moreover, some types of mitigation may be *more* compelling for Black and Hispanic defendants than for White defendants. Evidence-supported health mitigation, collateral consequences, and character mitigation significantly predicted reduced sentences for Black and Hispanic defendants, although not for White defendants. It is difficult to know how much to make of this distinction—among those three forms of mitigation, only evidence-supported health mitigation was a *statistically significant* stronger predictor of reduced sentences for Black and Hispanic defendants as compared to White defendants. But the difference also makes sense—there are practical, commonsense reasons why some Black and Hispanic defendants' mitigation may be particularly compelling.

Take, for example, the case of Frederick Lamont Sams—a Black man convicted of being a felon in possession of a firearm.²⁶² Sams's attorney described in detail the way Sams's horrific childhood led to destabilization of his life, mental illness, and substance use disorder:

Shortly after his mother separated from [her prior partner], she took Mr. Sams' siblings and moved in with another family, leaving him behind. Mr. Sams recalls living in their vacant home, without power or water, and on the street. Though he tried continuing to go to school, he was embarrassed and ashamed by his dirty clothes and inability to bathe. He would eat at school or find free food at some local fast-food places. Not surprisingly, he racked up several juvenile arrests that culminated in a

260. See *supra* Part I.B.1.

261. See *supra* Table 5.

262. Defendant's Sentencing Memorandum at 11, *United States v. Sams*, No. 22-cr-31-TJC-LLL (M.D. Fla. Mar. 24, 2023).

robbery at fourteen years old for which he was direct filed as an adult. . . . In what can only be described as a sad commentary on his life to that point, Mr. Sams told the probation officer that prison was preferable to living on his own.²⁶³

Sams's lawyer further described how, as a result of his unstable family life, he developed early signs of mental illness, with one of his first-grade teachers creating "a packet for mental health services for him."²⁶⁴ His lawyer explained how Sams was then diagnosed with cognitive disabilities and began smoking marijuana at age ten as a way of dealing with the trauma he had experienced.²⁶⁵

Sams's story offers particularly compelling mitigation. Though not everyone will agree, some observers will read Sams's story and wonder how he might have ended up anywhere *other* than with a substance use disorder and incarcerated—or at least acknowledge that circumstances out of Sams's control steered him sharply toward that path. And defendants like Sams—who have experienced serious trauma, addiction, and mental illness—are disproportionately low-income and non-White. Mitigation, it seems, might be a way for defendants to better explain—in part—why they wound up in a courtroom. My data are consistent with the notion that judges find that explanation relevant to sentencing.

Third, there are racial differences in the amount of mitigation that attorneys present, though they are partially explained by nonlegal factors. Even if judges are equally persuaded by mitigation coming from defendants across races, racial bias can still affect the impact of mitigation if attorneys do not *present* mitigation equally across races. In my dataset, they do not. As a whole, attorneys presented an average of just over 2,100 words of mitigation for White defendants and just over 1,650 words of mitigation for Black and Hispanic defendants—more than a 20 percent difference. That difference may seem striking, but it is most plausibly explained by a factor other than the defendant's race itself—the defendant's detention status. When controlling for relevant legal factors in a regression, the defendant's race does not significantly predict the amount of mitigation presented. But the defendant's detention status strongly does. On average, attorneys present 757 fewer words of mitigation for a detained defendant than for one on bond. And White defendants are far more likely to be on bond than Black and Hispanic defendants.²⁶⁶ In short, attorneys may not be less likely to present mitigation for a non-White client; instead, they may be less likely to present mitigation for a currently incarcerated client.

There is one important caveat to all of this. In my dataset, the mitigating factor that most strongly predicts reduced sentences is evidence-supported health mitigation: a category that includes arguments about defendants' mental health or substance use disorders that might have contributed to their

263. *Id.* at 6.

264. *Id.* at 5.

265. *See id.* at 5–6.

266. *See* Sawyer, *supra* note 39.

crime. Attorneys presented far less of this kind of mitigation for Black and Hispanic defendants than for White defendants, and that difference is significant even when controlling for the defendant's detention status.²⁶⁷ Some of this gap may be due to the attorney's racial bias, but some is also likely due to gaps in the ability to identify and present evidence. It is possible that Black and Hispanic defendants are less able to clearly document and support their health-related mitigation than White defendants, causing their attorneys to present less of it at sentencing.²⁶⁸

Fourth, although mitigation as a whole appears to appeal to Democrat- and Republican-appointed judges equally, some categories of mitigation may be more persuasive to Democrat-appointed judges. My data focusing on judicial politics are in some ways similar to the data focusing on race. On the whole, mitigation generally predicts reduced sentences, and personal mitigation strongly predicts reduced sentences, no matter the political background of the sentencing judge.²⁶⁹ But there are political differences when it comes to certain types of personal mitigation that may be particularly effective, especially character and collateral-consequences mitigation. Though it is always challenging to draw causal conclusions from observational data like these, one possible explanation is that Democrat-appointed judges find these sorts of arguments more compelling—they believe that defendants' backgrounds outside of the crime committed, their past demonstrations of character, and the effects that prison may have on their families ought to be considered in deciding how to sentence.

That conclusion finds some support in the prior literature as well. Given that more conservative judges tend to sentence more harshly on the whole and are more resistant to departures from the Guidelines range,²⁷⁰ it would not be surprising for them to be less receptive to particular arguments about individual defendant characteristics that push for a more lenient sentence.

Fifth, attorneys' thoroughness in presenting mitigation substantially varies on two bases: the group level (with CJA panel-appointed attorneys presenting less mitigation than other attorneys) and the individual level (with some attorneys systematically presenting far more mitigation than others). As with drawing a judge for their case, indigent defendants face a substantial

267. See *supra* note 240 and accompanying text.

268. Existing literature suggests that healthcare providers, potentially due to implicit bias, are less likely to recommend key treatments and, broadly, less likely to take patients seriously when they are Black or Hispanic, as compared to White patients. See Joe Feagin & Zinobia Bennefield, *Systemic Racism and U.S. Health Care*, 103 SOC. SCI. & MED. 7, 10–11 (2014) (providing a review of several articles describing this trend). As one example, doctors are less likely to treat Black and Hispanic patients for chronic pain than they are to treat White patients for chronic pain. See generally Mary E. Morales & R. Jason Yong, *Racial and Ethnic Disparities in the Treatment of Chronic Pain*, 22 PAIN MED. 75 (2021) (summarizing the current literature on the topic). Similar disparities in treatment may extend to mental-health care, where minority patients are generally less likely than White patients to receive the best available treatments for common disorders like depression and anxiety. Thomas G. McGuire & Jeanne Miranda, *New Evidence Regarding Racial and Ethnic Disparities in Mental Health: Policy Implications*, 27 HEALTH AFFS. 393, 396 (2008).

269. See *supra* notes 241–46 and accompanying text.

270. See *supra* notes 114–29 and accompanying text.

luck-of-the-draw element when the court assigns them counsel. They may be appointed a federal defender, or a CJA panel-appointed attorney if the federal defender's office has a conflict or is otherwise unable to take their case. When it comes to mitigation, the difference appears to be important. The data I report here support several conclusions as to the relationship between defense counsel and mitigation. First, mitigation appears to be a general benefit across the board: no matter the type of defense attorney (whether federal defender, CJA panel-appointed, or privately retained), presenting personal mitigation is strongly correlated with a reduced sentence, even when controlling for a variety of case and defendant characteristics.²⁷¹

But critically, the types of counsel were not equal in carrying out that role. CJA panel-appointed attorneys presented only about 60 percent as much personal mitigation as federal defenders and less than 55 percent of the total mitigation presented by privately retained attorneys. This is true even when controlling for a number of case characteristics—having a CJA panel-appointed attorney predicts a 355-word decrease in the amount of personal mitigation presented to the judge. Of course, as discussed above, there are selection challenges in interpreting these data: counsel type is not randomly selected, and there may be case or defendant characteristics that correlate with the type of counsel appointed that drive the differences I observe. But these caveats aside, the data are at least consistent with the inference that panel-appointed attorneys are less thorough in presenting mitigation than other defense attorneys, and the resulting lack of mitigation predicts higher sentences for defendants with panel-appointed attorneys.

Second, defendants are subject to a substantial luck-of-the draw element in terms of the individual attorney that represents them, separate from that attorney's type. Looking entirely within federal defenders, I found enormous differences in the amount of personal mitigation presented by individual defenders, and those differences persisted across a number of cases involving different defendants. On the whole, attorneys in the thorough category presented nearly five times as much personal mitigation as attorneys in the minimal group—a difference of more than 1,000 words on average. That's no small difference to a defendant facing an incarceration sentence: as noted above, an additional 1,000 words of personal mitigation predicts an approximately 13 percent reduction in a defendant's sentence—equivalent to about sixteen months. Put simply, the evidence supports the conclusion that some individual attorneys are particularly effective in presenting mitigation, with a likely impact on the final sentencing result.

Last, the fact that presentation of personal mitigation is consistent at the individual attorney level across cases involving different defendants provides evidence that persuasive mitigation depends on the individual attorney as well as the defendant. If differences in mitigation presented across cases were entirely due to some defendants having more compelling mitigation stories to tell, we would expect that there would not be consistency at the

271. See *supra* notes 246–50 and accompanying text.

attorney-level in the amount of mitigation presented across cases. My data here rebut that. Effective defenders present personal mitigation to humanize their clients across a range of cases, despite the fact that some defendants might have more compelling stories to tell than others.

* * *

In sum, the data I present here tell a relatively encouraging story. To be sure, there are a number of ways that defendants will not all receive an equal benefit from mitigation. One defendant may draw a conservative judge who is unpersuaded by character mitigation, or a defendant may be represented by an attorney who is less thorough in presenting mitigation than his colleague. But I do not find substantial evidence of more pernicious racial biases that poison many other aspects of the criminal justice system. And in some cases, mitigation coming from particularly disadvantaged non-White defendants may be particularly compelling. In short, it seems that there is rough equality in sentencing mitigation, at least across the dimensions that I studied.

There are, of course, important limitations to my methods. First, it is always difficult to draw causal conclusions from observational data like I describe here. Some of that challenge can be minimized through the use of control variables. By linking the Sentencing Commission's data to my hand-coded mitigation data, I was able to control for a number of defendant and case characteristics that may correlate with mitigation, including race, gender, age, crime type, criminal history, detention status, and crime severity. When controlling for all of those variables, increased presentations of mitigation still strongly predict reduced sentences, strengthening the causal conclusions we can draw. Moreover, the fact that the results I see here align well with the prior literature and existing theories about judicial decision-making and attorney performance makes it easier to draw causal conclusions from the results. Still, there could be other unmeasured characteristics partially driving the effects of mitigation I see here, such as socioeconomic status, employment history, or specific crime characteristics that are not captured by the Sentencing Commission's data. Although the Sentencing Commission data do not have measures for those characteristics, the individual presentence reports likely do. So, there is a potential mechanism to measure and control for those characteristics in future work.

A second important limitation here is the relatively small sample size of cases. This limitation is largely driven by the resource-intensive process of hand-coding cases, but it restricts my ability to identify specific interactions between the impact of mitigation and particular defendant and case characteristics. One good example is race. To maximize power to find interactions between race and mitigation, I combined Hispanic and Black defendants into a single group, eliminating the ability to identify any differences between those groups. Likewise, because I chose to gather a national sample of cases, I am limited in my ability to identify district- and

region-level differences in the sample.²⁷² These limitations are compounded by the fact that some of the important findings I report here are null results—especially my finding that there are not substantial racial differences in how presentations of mitigation correlate with sentences. We must take particular caution in drawing broad conclusions from null results based on small sample sizes.

A third limitation relates to the individual-attorney cases that I coded. I found substantial differences in the performance between individual attorneys, with some attorneys regularly presenting far more mitigation than others. But it is possible that this difference is due to case selection, rather than attorney performance. Specifically, if the attorneys in my thorough group were systematically more often assigned to represent defendants with substantial mitigation to present, then those defendant-specific characteristics could drive the result I found, even if attorney performance is constant. Although this limitation is worth noting, I am doubtful that it substantially contributes to the result I found for two reasons. First, although case assignment in federal defenders' offices is not random, I am not aware of any systematic process through which certain attorneys would be assigned cases involving defendants with substantial mitigation. Instead, the kind of nonrandom assignment that is typical involves assigning complex cases to experienced attorneys or to attorneys with particular subject-matter expertise. Second, even if an office sought to assign cases with substantial mitigation to particular attorneys, it would struggle to do so. Attorneys investigate and identify mitigation throughout the life of the case, and counsel assignment happens at the start of the case, when the office typically does not know about the extent of mitigation involved.²⁷³

Last, there are other limitations in the general methods of this study, which I have discussed in prior work.²⁷⁴ Using word counts as a measure of mitigation is a somewhat coarse approach—some lengthy presentations of mitigation may not portray a very compelling story, and vice versa.²⁷⁵ I made this methodological choice primarily to maximize the reliability and objectivity of coding. Although it is an imperfect measure, the fact that a variety of types of mitigating factors consistently and significantly predict

272. This is a worthwhile limitation to consider because there are regional differences in federal sentencing practices at the district level. *See, e.g.*, U.S. SENT'G COMM'N, INTER-DISTRICT DIFFERENCES IN FEDERAL SENTENCING PRACTICES, SENTENCING PRACTICES ACROSS DISTRICTS FROM 2005–2017, at 7 (2020), https://www.ussc.gov/sites/default/files/pdf/research-and-publications/research-publications/2020/20200122_Inter-District-Report.pdf [<https://perma.cc/C4AD-453T>] (documenting differences and noting that “[c]ertain districts have consistently sentenced more, or less, severely in relation to the guideline minimums than other districts, both over time and across offense type”).

273. *See Criminal Justice Act (CJA) Guidelines: Chapter 2, § 210: Representation Under the CJA*, U.S. CTS., <https://www.uscourts.gov/administration-policies/judiciary-policies/guidelines-administering-cja-and-related-statutes-4> [<https://perma.cc/R6LK-UTGX>] (“A person financially eligible for representation should be provided with counsel as soon as feasible after being taken into custody.”).

274. *See* Meixner, *supra* note 31, at 1460–63.

275. *See id.* at 1461–62.

reduced sentences is evidence that word counts bear on the true impact of mitigation, if imperfectly.²⁷⁶ Likewise, in order to examine cases where there is a potential to be impactful, I excluded certain categories of cases, such as immigration cases.²⁷⁷ Although that limits the extent to which we can generalize these results to those categories of cases that are excluded, this type of exclusion is a common practice that ensures that all of the cases in the sample are ones where the presentation of mitigation is meaningful.

B. Implications for Reform

The data from this project help explain how sentencing mitigation functions and provides reassurance that, although not every defendant will receive an equal benefit from mitigation, no large effects of racial bias seem likely to pervade the mitigation process as they do in other areas of the criminal legal system. But in addition to that *descriptive* understanding of mitigation, the data also have significant *normative* implications for policy reform. Here, I briefly describe three potential areas: (1) providing judges with more sensible Guidelines to encourage consistency in deciding how to weigh mitigation, (2) easing barriers to developing mitigation for defendants who are detained prior to sentencing, and (3) prioritizing mitigation resources and training for defense attorneys to reduce gaps in quality.

1. Providing Judges with More Sensible Guidelines on Mitigation

As I noted in Part I.A, for years, federal judges have been given conflicting messages about how to treat mitigation (including the four years sampled in this study). On the one hand, to encourage sentencing uniformity, the Guidelines gave judges relatively restrictive directives to not give “excessive weight” to “specific offender characteristics”—which encompasses most of the personal mitigation described here.²⁷⁸ The Guidelines more specifically directed judges to give only very limited consideration to some of the most impactful forms of mitigation in my dataset: character,²⁷⁹ collateral consequences,²⁸⁰ and health-related mitigation.²⁸¹

On the other hand, the federal sentencing statute, 18 U.S.C. § 3553(a), permits judges to broadly consider the “history and characteristics of the

276. *See id.*

277. *See supra* note 148.

278. U.S. SENT’G GUIDELINES MANUAL § 5H (U.S. SENT’G COMM’N 2024).

279. *Id.* § 5H1.11 (“Civic, charitable, or public service; employment-related contributions; and similar prior good works are not ordinarily relevant in determining whether a departure is warranted.”).

280. *Id.* § 5H1.6 (“In sentencing a defendant . . . family ties and responsibilities are not ordinarily relevant in determining whether a departure may be warranted.”).

281. *Id.* § 5H1.3 (permitting consideration of mental and emotional health only in the “unusual” situation that “distinguish[es] the case from the typical cases covered by the guidelines”); *id.* § 5H1.4 (explaining that “[d]rug or alcohol dependence or abuse ordinarily is not a reason for a downward departure”).

defendant” in deciding how to sentence them.²⁸² With those two sources of law combined, judges are left with little guidance. They have a Guidelines range to consider and a limited framework of how to weigh mitigation within that Guidelines range, but no clear guidance of whether and how mitigation should affect broader decisions about sentencing outside of the Guidelines range.

Further complicating matters, just months ago, the Commission—aware that the conflict in this area had befuddled judges for years and that *Booker* substantially reduced the weight of the Guidelines’ importance in mitigation—decided to eliminate *any* consideration of mitigation as a formal part of the Guidelines process and instead move the policy statements from Part 5H to a “historical appendix.”²⁸³ Though I save a full discussion of these important amendments for a later day,²⁸⁴ I note that it is unclear what outcome-determinative effect they will have on mitigation. The Commission’s view is that the amendments are intended to be “outcome neutral” and that “judges who would have relied upon facts previously identified as a basis for a departure will continue to have the authority to rely upon such facts . . . to impose a sentence outside of the applicable guideline range as a variance under 18 U.S.C. § 3553(a).”²⁸⁵ Of course, judges may see it differently. They may have previously felt constrained in weighing mitigation under § 3553(a) because of the restrictive Guidelines language. Alternatively, now that the restrictive text is gone, they might decide that background mitigation warrants greater consideration under § 3553(a).²⁸⁶

Regardless of judges’ interpretation of the amendments, the evidence is mounting that, despite the confusing law, judges consider mitigation an important part of the sentencing calculus and routinely use it in deciding whether to sentence outside of the Guidelines range. Mitigation is not only a significant predictor of judges’ sentencing decisions in my dataset, it is a predictor of *substantial* changes, with 1,000 words’ worth of personal mitigation predicting a 13 percent reduction in a defendant’s sentence. And mitigation is predictive of those reduced sentences even when controlling for a variety of case and defendant characteristics. These data are in line with judges’ subjective views: in two sets of surveys given to federal judges in the early 2000s, substantial majorities of judges said they found mitigation involving the defendant’s mental health and character ordinarily relevant to their sentencing decisions.²⁸⁷

Of course, one might have legitimate disagreement about whether it is a normatively good thing for judges to consider highly subjective evidence like

282. 18 U.S.C. § 3553(a).

283. See *supra* notes 88–89 and accompanying text.

284. See generally Meixner, *supra* note 77.

285. U.S. SENT’G COMM’N, AMENDMENTS TO THE SENTENCING GUIDELINES 82 (2025), https://www.ussc.gov/sites/default/files/pdf/amendment-process/reader-friendly-amendment-s/202505_RF.pdf [<https://perma.cc/A78Q-HRY4>].

286. See Meixner, *supra* note 77, at 46.

287. See U.S. SENT’G COMM’N, 2010 SURVEY, *supra* note 175, at 2–4, tbl. 13; U.S. SENT’G COMM’N, 2003 SURVEY, *supra* note 175, at B-8.

personal mitigation and exercise great discretion in deciding how to weigh it. This is especially so given that similar discretionary decisions result in racially disparate outcomes across the gamut of procedures in criminal justice. But the data I present here provide at least some evidence toward assuaging that concern. Mitigation remains a powerful predictor of reduced sentences when controlling for race, and I found no categories of mitigation that are more strongly associated with reduced sentences for White defendants than for Black and Hispanic defendants. Indeed, certain powerful mitigating factors focusing on character, collateral consequences, and health may be *more* powerful when presented by Black and Hispanic defendants. In that sense, mitigation may serve—if only in a small way—as a sort of equalizer, providing minority defendants with a way to articulate their lived experiences and challenges and, in return, receive appropriate consideration and mercy.

Given the evidence I show here that judges consider mitigation important in sentencing and that mitigation is relatively unlikely to promote further racial disparities, we ought to consider reframing our sentencing rules to provide judges with sensible guideposts as to how to consider mitigation. One of the primary animating purposes of the Guidelines was to identify what judges were already doing in the highly discretionary pre-Guidelines era and codify that behavior, with the goal of largely retaining past practices and discretion while providing more uniformity.²⁸⁸ The evidence I report suggests that the policy statements used in the Guidelines for nearly forty years are out of step with judges' practice. Before the 2025 amendments, Part 5H of the Guidelines directed that "[c]ivic, charitable, or public service; employment-related contributions; and similar prior good works are not ordinarily relevant"²⁸⁹ to departure determinations. But my data suggest that judges consider character mitigation important in sentencing. Likewise, the Guidelines instructed judges that the defendant's "family ties and responsibilities are not ordinarily relevant."²⁹⁰ However, in my dataset, it is exactly that sort of mitigation that strongly predicts reduced sentences. And although the Guidelines permitted considerations of "[m]ental and emotional conditions" in making departure decisions, those considerations are restricted to "unusual" cases, and considerations of "[d]rug or alcohol dependence or abuse" ordinarily should not be considered.²⁹¹ But my data suggest that judges regularly find these sorts of considerations important.²⁹²

Of course, the Commission has now voted to eliminate this guidance. Although that is a positive thing—in my view—what would be more positive

288. See U.S. SENT'G GUIDELINES MANUAL § 1A1.3 (U.S. SENT'G COMM'N 2024) ("In its initial set of guidelines, the Commission sought to solve both the practical and philosophical problems of developing a coherent sentencing system by taking an empirical approach that used as a starting point data estimating pre-guidelines sentencing practice. It analyzed data drawn from 10,000 presentence investigations.").

289. *Id.* § 5H1.11, p.s.

290. *Id.* § 5H1.6, p.s.

291. *Id.* § 5H1.3–4, p.s.

292. See generally *supra* note 225 and accompanying text (describing data).

would be affirmative guidance demonstrating how most judges consider mitigation, where the areas of disagreement lie, and articulating typical treatment of it to provide for uniformity.²⁹³ That is, the Commission (and Congress) should consider reform to draft language that brings the Guidelines into line with judges' actual practices and provides for more uniformity in how judges consider mitigation.²⁹⁴ This is especially so given that § 3553(a) provides a broad grant of authority to consider mitigation and—when combined with the Guidelines' advisory nature after *Booker*—undoubtedly causes individual judges to have entirely different notions of what sorts of evidence should affect the sentence imposed. Indeed, my data showing differing effects of mitigation based on the political background of the sentencing judge imply that judges vary in how important they consider mitigation. Moreover, encouraging judges to broadly consider mitigation is in line with what the Guidelines' original advocates envisioned. One good example: the most influential figure in bringing the Guidelines into existence—Judge Marvin Frankel—later lamented that the Commission (in part, bound by Congress) implemented a “cursory and mechanical” view of mitigation that led to overly severe results and failed to guide judges on when mitigation should be considered.²⁹⁵

293. See Meixner, *supra* note 77, at 71, 74.

294. Some within the Commission may take the position that at least some of these considerations are beyond the Commission's ability to change. One portion of the statute that guides the Sentencing Commission's structure and function at least ostensibly limits the extent to which the Commission is permitted to encourage certain forms of mitigation, instructing the Commission to “insure that the guidelines . . . reflect the general inappropriateness of considering the education, vocational skills, employment record, family ties and responsibilities, and community ties of the defendant.” 28 U.S.C. § 994(j). However, the legislative history of the Sentencing Reform Act indicates that this provision was never intended to limit the sort of mitigation discussed here but was rather introduced to ensure that underprivileged defendants were not *harmed* because of a lack of education, vocational skills, employment record, and the like. See Meixner, *supra* note 77, at 21–22. But even taking a narrower read of § 994(e) as outright prohibiting the consideration of some forms of mitigation, the Commission might be able to provide guidance as to those forms of mitigation that do not fall directly within “family ties and responsibilities” or “education, vocational skills, [and] employment record . . . of the defendant.” *Id.* For example, the Commission might not run afoul of § 994(e) if it told judges they could consider how the defendant has a history of volunteer work or civic service or how a conviction and incarceration could harm the defendant's future employment prospects and flourishing. And redrafting other portions of Part 5H might be possible through the Sentencing Commission's normal procedures rather than the more politically fraught process of federal legislation. Section 994(e) is silent as to many forms of personal mitigation, including health-related mitigation (such as mental health and addiction).

295. See Marvin E. Frankel, *Sentencing Guidelines: A Need for Creative Collaboration*, 101 YALE L.J. 2043, 2047–48 (1992) (“Part of the pattern of excessive severity is the Commission's relatively cursory and mechanical handling of mitigating factors. Congress listed, for varying reasons, a variety of offender characteristics that it decreed should be considered as grounds for departure from the guideline ranges only when relevant. . . . Unfortunately, that cryptic announcement said that factors the judges had long been accustomed to consider are now ‘not ordinarily relevant,’ leaving the judges at large to figure out when extraordinary circumstances might make it appropriate to take the old concerns into account.” (quoting U.S. SENT'G GUIDELINES MANUAL § 5H (U.S. SENT'G COMM'N 1992))).

A detailed articulation of potential redrafted Guidelines language for mitigation warrants far greater treatment than I have space for here.²⁹⁶ But the evidence that judges find these types of mitigation relevant warrants the Commission's careful consideration. Broadly, the Commission could (1) redraft the language of portions of what is currently Part 5H (and will soon be an appendix) to explicitly allow for broader consideration of the kinds of personal mitigation that already appear to influence judges' decisions and (2) attempt to identify areas within various mitigating factors that judges find particularly compelling, either through surveying judges directly or through studying the relationship between mitigating factors and sentencing decisions, as I have done here.

To be sure, some reasonable judges will disagree that any of these forms of mitigation are appropriate to consider at sentencing and will take the position that the sentence should be based almost entirely on the facts of the crime itself, along with the defendant's criminal history. Although I think that personal mitigation is a morally appropriate thing to consider in sentencing, my goal here is not to defend that normative position. Instead, my goal is to show that many judges also agree that these forms of mitigation are worth considering, and there is evidence that they are already considering them. It follows that the Guidelines should reflect that. And critically, nothing in Part 5H of the Guidelines *requires* judges to modify a sentence based on any personal characteristics of the defendant; instead, it simply gives judges the *option* to do so.²⁹⁷ That option should extend more broadly to kinds of personal mitigation currently disfavored by the Guidelines.

2. Easing Barriers to Developing Mitigation for Defendants Who Are Detained Prior to Sentencing

One striking—and disturbing—finding from my data is the fact that defense attorneys presented less mitigation in cases where they were representing Black or Hispanic defendants than in cases where they were representing White defendants. But critically, this effect disappears entirely when controlling for the defendant's detention status. Indeed, it is the defendant's detention status itself that strongly predicts the amount of mitigation presented.²⁹⁸ One can draw a reasonable inference: it is challenging to work with detained clients to identify appropriate mitigation, and so defense attorneys present less of it when their clients are detained. And because Black and Hispanic defendants are detained at much higher rates than White defendants, detention results in a racial disparity, with Black and Hispanic defendants having less mitigation presented on their behalf than White defendants.

296. See Meixner, *supra* note 77, at 72–74.

297. See U.S. SENT'G GUIDELINES MANUAL § 5H (U.S. SENT'G COMM'N 2024) (instructing that a range of potential mitigating factors “may” be relevant but never stating that they must be weighed by the judge).

298. See *supra* notes 234–42 and accompanying text.

The best way to solve that racial disparity is to reduce the impact of pretrial detention on mitigation. One way to do that is simple: detain fewer defendants pretrial. In 2023, nearly 70 percent of defendants were detained pretrial and never released prior to termination of their case.²⁹⁹ But there is little evidence that such a high detention rate is necessary. Only about 3.8 percent of federal cases involve violent crimes like homicide, assault, robbery, or kidnapping.³⁰⁰ Even considering all drug and gun cases as “violent,” only about one third of federal cases fall in that category.³⁰¹ Almost all defendants released pretrial are successful while on release; even among those defendants classified at the highest risk levels, well under 5 percent fail to appear during their case.³⁰² And federal detention is expensive, costing taxpayers nearly \$1.5 billion per year.³⁰³

But reducing presentencing detention rates is a major policy undertaking, fraught with political challenges.³⁰⁴ Perhaps a more realistic solution is to seek policy changes that make it easier for attorneys to investigate and present mitigation on behalf of detained clients. Finding that solution begins with a question: what are the barriers that make mitigation practice challenging when working with a detained client? The literature on this topic is sparse, but it has identified several key problems through interviews with defense counsel, staff at detention facilities, and incarcerated people.³⁰⁵ Most of the problems relate to relatively straightforward limitations on communication with defense counsel:

299. U.S. CTS., TABLE H-14: U.S. DISTRICT COURTS—PRETRIAL SERVICES RELEASE AND DETENTION FOR THE 12-MONTH PERIOD ENDING SEPTEMBER 30, 2023, at 1 (2023), https://www.uscourts.gov/sites/default/files/data_tables/jb_h14_0930.2023.pdf [<https://perma.cc/A852-K8D2>].

300. MARK MOTIVANS, U.S. DEPT. OF JUST. BUREAU OF JUST. STATS., FEDERAL JUSTICE STATISTICS, 2022, at 2–3 (2024), <https://bjs.ojp.gov/document/fjs22.pdf> [<https://perma.cc/TF3D-B23J>].

301. *Id.*

302. Matthew G. Rowland, *The Rising Federal Pretrial Detention Rate, in Context*, 82 FED. PROB. 13, 18 (2018). Despite this low rate of nonappearance, over 80 percent of defendants at this risk level are detained pretrial. *Id.*

303. *Id.* at 13.

304. See, e.g., Stephanie Wylie & Ames Grawert, *Challenges to Advancing Bail Reform*, BRENNAN CTR. FOR JUST. 4–8 (2024), <https://www.brennancenter.org/our-work/research-reports/challenges-advancing-bail-reform> [<https://perma.cc/ZJ7T-SRPX>] (describing various political challenges to recent attempts to reform cash bail systems). One straightforward way to reduce pretrial detention rates (helpfully suggested by Rachel E. Barkow) would be to remove the presumptive detention for most drug offenses under the Bail Reform Act of 1984, Pub. L. No. 98-473, tit. II, ch. I, 98 Stat. 1976 (codified as amended in scattered sections of 18 U.S.C.); see 18 U.S.C. § 3142(e)(2), (f)(1) (providing for “a rebuttable presumption” of detention for most cases involving controlled substances). Of course, doing so would raise political challenges.

305. See, e.g., ADVISORY GRP. OF DOJ COMPONENTS, REPORT AND RECOMMENDATIONS CONCERNING ACCESS TO COUNSEL AT THE FEDERAL BUREAU OF PRISONS’ PRETRIAL FACILITIES 3 (2023), https://www.justice.gov/d9/2023-07/2023.07.20_atj_bop_access_to_counsel_report.pdf [<https://perma.cc/T8E3-JMCC>] (describing the methodology of identifying challenges to access to counsel for pretrial detainees, including literature reviews, interviews, and Bureau of Prisons site visits).

- *In-person visits.* Developing mitigation can be extremely time intensive, as it requires learning an enormous amount of background information about the defendant that may not squarely relate to other aspects of the defense. Moreover, in many cases, defense counsel must build a rapport with a defendant before they will willingly share information that may be strong mitigation, such as a history of mental illness or a substance use disorder. Thus, regular in-person legal visits with detained clients are often essential to developing successful mitigation.³⁰⁶ But many detained defendants do not have robust visitation access. Even among federal facilities governed by U.S. Department of Justice (DOJ) standards—which provide for more substantial visitation rights than many state facilities—visitation hours are often limited, especially on weekends.³⁰⁷ Moreover, many facilities do not allow attorneys to schedule appointments with clients in advance, leading to long wait times.³⁰⁸ Some facilities are located far away from the federal defender’s office representing the client, resulting in long drives for counsel and making visits challenging, especially with the inability to schedule visits in advance.³⁰⁹ And—particularly critical for mitigation—many facilities limit the ability of nonattorneys (such as paralegals, investigators, or mitigation specialists) to attend visits.³¹⁰ This is potentially devastating, as mitigation specialists and nonattorney staff members are a critical part of developing a mitigation strategy.³¹¹
- *Phone communication.* With in-person visits made challenging, communication between defenders and clients by phone becomes more important. But in a recent DOJ investigation, 70 percent of defense attorneys interviewed were dissatisfied with the systems for arranging calls with their clients detained in DOJ facilities.³¹² In many cases, unmonitored lines that allow detained defendants to speak freely are unavailable.³¹³ This likely heavily limits the extent to which attorneys are able to discuss mitigation over the phone. Many facts relevant to mitigation, like a history of a substance use disorder or mental illness, have the potential to be *aggravating* as well as mitigating. Detained defendants will likely be hesitant to talk about

306. *Id.* at 15.

307. *Id.* at 15–16.

308. *See id.* at 17–18 (“Numerous defense attorneys expressed a desire for the option of scheduling legal visits in advance, so that they can more reliably visit their clients in detention. They emphasized a calendaring system would be particularly beneficial for mission-critical meetings . . . as well as when attorneys are traveling from out of state for visits.”).

309. *See, e.g., Frequently Asked Questions*, IND. FED. CMTY. DEF., <https://www.indiana.federaldefender.org/for-clients-families/frequently-asked-questions/> [https://perma.cc/9SLU-3U6T] (last visited Sep. 3, 2025) (“If you are detained pretrial, the US Marshals will house you based on where bedspace is available. Some of the detention facilities are quite a distance from Indianapolis.”).

310. ADVISORY GRP. OF DOJ COMPONENTS, *supra* note 305, at 21–22.

311. *See infra* notes 341–49 and accompanying text.

312. ADVISORY GRP. OF DOJ COMPONENTS, *supra* note 305, at 30.

313. *See id.* at 29–30.

them in a monitored phone call, where they could be used against the defendant later in the litigation.³¹⁴

- *Written correspondence.* As with phone calls, effective written mitigation practice requires confidentiality, allowing defendants to share sensitive information with their attorneys so the defense team can make a strategic decision on how to proceed. But, even though facilities' official procedures sometimes provide ways for detainees to send and receive mail confidentially, in practice, detainees regularly lose access to confidential mail (whether because mail is opened to test for drug smuggling, mail is lost, or mail is improperly returned).³¹⁵ And many facilities require guards to open all incoming legal mail first, inspect it, and only then provide it to the detainee.³¹⁶ These problems are exacerbated for email. Under the Federal Bureau of Prisons' system for detainee email access, all email is monitored, regardless of whether it is between a detainee and an attorney.³¹⁷ This limitation makes email—which could otherwise be a powerful tool to communicate about mitigation—severely limited. There are other problems limiting the use of email as well. In the Bureau of Prisons, detainees' emails are not permitted to include any attachments, limiting the ability to correspond about photographs or documents that might be mitigating.³¹⁸ And the Bureau of Prisons uses a pay-for-service platform, meaning that detainees' "ability to email their attorney . . . hinge[s] on whether they ha[ve] money in their account."³¹⁹
- *Record access.* Building a compelling case of mitigation can be a complicated endeavor involving substantial document review. Some of the mitigation in my dataset was only associated with reduced sentences when supported by some evidence beyond the attorneys' bare statements—most notably health mitigation, where evidence like documentation of treatment or diagnoses can provide support for

314. There are other layers of protection to keep privileged calls from reaching the prosecution team. Typically, prosecutors' offices will incorporate "taint teams"—comprised of members not a part of the prosecution team—to review potentially privileged materials like jail calls and filter out any privileged materials. *See, e.g.,* Anna Dincher, *How to Fix DOJ Privilege Teams*, 2 U. CHI. BUS. L. REV. 429, 429–30 (2023); *see also* U.S. Dep't of Just., Just. Manual § 9-13.420(D) (2024). But even so, defendants will likely be reluctant to speak candidly on a recorded line for a number of reasons. For example, they may not trust that privileged conversations will be appropriately filtered out, or they may worry that their statements could be used against them by jail officials.

315. *See* ADVISORY GRP. OF DOJ COMPONENTS, *supra* note 305, at 32–33.

316. *Id.* at 32–33. (outlining Metropolitan Detention Center (MDC) Los Angeles policies in the "Spotlight" section).

317. *Id.* at 34 ("Individuals in detention who choose to opt-in to TRULINCS email communication are provided advance notice that, in doing so, they have consented to having *all* of their written communications over this system, including communications with their attorney, subject to monitoring for content that might jeopardize public safety or the safety of the facility, and that 'such messages will not be treated as privileged communications.'").

318. *Id.* at 34.

319. *Id.* at 35.

claims of health problems. Building that sort of case requires attorneys and their clients to identify and review documents. But facilities often do not have systems in place that allow detainees to review voluminous electronic documents.³²⁰ As a result, several problems may arise: compatibility problems between files provided by attorneys and the computer terminals in the detention facility; limited hours and computers for review; or computers that are not private, preventing review of materials confidentially.³²¹ Sometimes, attorneys can bring a laptop with the relevant materials during an in-person visit, but many facilities rarely or never permit defense team members to bring in a computer.³²²

For each of these problems, there are relatively straightforward, realistic solutions that would allow detained defendants to receive substantially greater mitigation benefits. Indeed, the DOJ has recommended a number of changes that would ease mitigation practice substantially.³²³ In particular, prisons should have a straightforward calendaring system to allow for scheduled legal visits and minimize attorneys' wasted time,³²⁴ streamlined clearance to allow nonattorney staff like mitigation specialists to regularly attend visits,³²⁵ expanded video conferencing to allow for greater communication when distance limits attorney visits,³²⁶ free and unmonitored phone communication between detained defendants and their lawyers,³²⁷ an unmonitored and secure email method for attorney-client communications,³²⁸ expanded resources for detainees to review mitigation-related documents,³²⁹ and a mechanism to allow members of the defense team to bring mitigation materials into detention facilities via laptop.³³⁰

Though all of these changes involve some cost to detention facilities, none are particularly onerous or politically tenuous. And all of these changes would lead to benefits far beyond sentencing mitigation—they would ease all aspects of representing defendants who are detained pretrial, including motion practice, plea negotiations, and trial preparation. Defendants who are detained pretrial fare worse in all of these areas, almost certainly as a result of limited access to their lawyers.³³¹ And, although a better long-term

320. *See id.* at 39.

321. *Id.* at 39.

322. *Id.* at 41–42.

323. *See generally id.*

324. *Id.* at 17, 26.

325. *See id.* at 21–23, 27.

326. *Id.* at 27–28.

327. *Id.* at 28–29, 31.

328. *Id.* at 36–37.

329. *See id.* at 47–48.

330. *Id.* at 46–47.

331. *See, e.g.,* Paul Heaton, Sandra Mayson & Megan Stevenson, *The Downstream Consequences of Misdemeanor Pretrial Detention*, 69 STAN. L. REV. 711, 717, 745–47 (2017) (finding, in misdemeanor cases, that detained defendants are more likely to plead guilty and be convicted than defendants who are released pretrial).

solution is to limit pretrial detention only to those cases where it is truly necessary, these stopgap measures would be a critical first step to encouraging mitigation and reducing the racial disparity in mitigation success that appears to be connected to pretrial detention rates.

3. Prioritizing Mitigation Resources and Training for Defense Attorneys to Reduce Gaps in Quality

My data comparing the mitigation practices of different types of defense counsel and of different individual federal defenders revealed two concerning results. First, although personal mitigation was strongly associated with reduced sentences when presented by any type of defense counsel (whether a federal defender, panel-appointed attorney, or privately retained attorney), panel-appointed attorneys presented far less personal mitigation—barely more than half as much as what federal defenders and privately retained attorneys presented.³³² Second, individual federal defenders presented enormously different amounts of personal mitigation. Some defenders consistently present substantial mitigation, whereas others do not.³³³

Although there are challenges in drawing causal conclusions from these data, as described above, both findings provide at least some evidence that defendants face a substantial luck-of-the-draw element in being assigned counsel for their cases. Those defendants assigned to CJA panel-appointed attorneys or to individual attorneys who do not prioritize mitigation may be less likely to have substantial mitigation presented in their case, with a likely longer sentence as the final result. We ought to strive for more uniformity among attorneys to minimize this element of luck and allow for more consistent presentation of mitigation across cases and defendants.

One way to do that might be to require a baseline duty for all attorneys to pursue and present mitigation in order to be considered legally effective, as I have argued before.³³⁴ But such change would be substantial—it would require courts to rethink what circumstances they consider ineffective assistance of counsel.³³⁵ And though a baseline duty might compel attorneys to provide some minimal level of mitigation, it still would not likely bridge the gaps in quality that I observe here. Instead, a more realistic solution is to increase training on mitigation practices, both for panel-appointed attorneys and for individual federal defenders.

There is already a framework in place for this: federal defender's offices regularly hold training sessions for attorneys who serve as CJA panel

332. See *supra* notes 246–50 and accompanying text.

333. See *supra* notes 250–60 and accompanying text.

334. See Meixner, *supra* note 31, at 1463–67.

335. See *id.* at 1464–65 (recognizing that incorporating a mitigation requirement into the standard of effectiveness from *Strickland v. Washington*, 466 U.S. 668 (1984), would require lower courts to begin recognizing a baseline duty that they have not already been recognizing).

appointees in their district.³³⁶ Likewise, some districts provide for “mentoring” programs where more experienced attorneys provide training for newer CJA panel-appointed attorneys.³³⁷ Most of those trainings focus on litigating cases involving specific substantive crimes, trial skills, and various other topics.³³⁸ These skills are of course important, but training on them is less useful when weighted against the importance of sentencing practice—particularly in federal cases. Mitigation should be viewed as a baseline skill that all attorneys are trained in and understand, just as they are in cross-examination or appellate brief drafting. Some examples are already in place. Last summer, the training division of the federal Defender Services Office gave a “Non-Capital Sentencing Mitigation Skills Workshop” focusing on developing a narrative of clients’ backgrounds and presenting it to the court effectively.³³⁹ Likewise, the federal Defender Services Office maintains a “Sentencing Resource Counsel”—a group of full-time attorneys who provide assistance in federal sentencing matters, including some resources devoted to mitigation practice.³⁴⁰ These sorts of training and resources must grow, both for panel-appointed attorneys and for individual federal defenders who may need help learning how to build a mitigation practice.

In addition to training attorneys, defenders’ services ought to consider focusing more resources on investigators and mitigation specialists who can handle mitigation work on cases represented by both federal defenders and panel-appointed attorneys. Much of mitigation practice does not require legal expertise; rather, it involves getting to know the client and the client’s family, investigating the community where the client lives and works, and building a narrative about the client’s life.³⁴¹ Investigators, who are

336. See, e.g., *CJA Attorney Training Program*, U.S. DIST. CT. FOR THE S. DIST. OF GA., <https://www.gasd.uscourts.gov/cja-attorney-training-program> [https://perma.cc/4AXV-ACSP] (last visited Sep. 10, 2025). Notably, the Southern District of Georgia is one of three districts nationally without a federal defender’s office. See Charles Bethea, *Is This the Worst Place to Be Charged with a Federal Crime?*, NEW YORKER (Nov. 5, 2021), <https://www.newyorker.com/news/us-journal/is-this-the-worst-place-to-be-poor-and-charged-with-a-federal-crime> (on file with the *Fordham Law Review*) (“[T]he Southern District of Georgia is one of three judicial districts, out of ninety-four, that do not have a defenders’ office.”).

337. See, e.g., *EDVA CJA Mentoring Program (Richmond Division)*, U.S. DIST. CT. FOR THE E. DIST. OF VA., https://www.vaed.uscourts.gov/sites/vaed/files/EDVA%20Richmond%20Div%20Mentoring%20Program_FINAL.pdf [https://perma.cc/TG48-E6PC] (last visited Sep. 3, 2025).

338. See, e.g., *CJA Training Materials*, OFF. OF THE FED. PUB. DEF. FOR THE N.D. OF CAL., <https://www.ndcalfpd.org/cja-training-materials> [https://perma.cc/TLX3-PTK2] (last visited Sep. 5, 2025) (providing listing of training sessions with minimal focus on sentencing mitigation).

339. See ADMIN. OFF. OF THE U.S. CTS. DEF. SERVS. OFF. TRAINING DIV., NON-CAPITAL SENTENCING MITIGATION SKILLS WORKSHOP (2024), https://www.fd.org/sites/default/files/training/events/2024/noncap_mit/final_agenda.pdf [https://perma.cc/5EYW-32WY].

340. See SENT’G RES. COUNSEL, <https://src.fd.org/> [https://perma.cc/9HCH-NZMW] (last visited Sep. 8, 2025).

341. See Denise C. Barrett, Frank Draper & Sarah S. Gannett, *Mitigation*, in DEFENDING A FEDERAL CRIMINAL CASE 739, 740–42 (2021), <https://mow.fd.org/sites/mow/files/training/sessions/Mitigation%20101/Defending%20a%20Federal%20Criminal%20Case%20Chap%2016%20-%20Mitigation.pdf> [https://perma.cc/X4UW-Q3C2]; see also Helen G. Berrigan,

commonly employed in defenders' offices, can handle much of this work.³⁴² And mitigation specialists, who often have a background in social work, are particularly equipped to investigate defendants' backgrounds, have clinical skills to recognize mental health conditions that may be mitigating, and have the experience to identify areas of mitigation that are likely to be successful.³⁴³ In the death penalty context, the use of mitigation specialists is routine and often mandatory.³⁴⁴ But in the noncapital felony context, far fewer nonlawyer resources are devoted to mitigation.³⁴⁵ There is no theory-based reason for that. Mitigation counsels in favor of a lower sentence in noncapital cases the same way it counsels in favor of a nondeath sentence in capital cases.³⁴⁶ We ought to seek ways to increase the prevalence of mitigation specialists, who can serve both to increase overall quality of mitigation and to level the playing field of mitigation quality across attorneys.

CONCLUSION

The future of sentencing mitigation stands at a crossroads. For years, the Guidelines favored uniformity over discretion when considering mitigation, minimizing the extent to which sentences could be individualized based on the personal characteristics of the defendant. In many ways, that system embodied the concerns of commentators who decried lawlessness at sentencing, fearing that consideration of individual defendant characteristics and circumstances would lead to systemic biases against particular defendants. But paradoxically, the advisory nature of the Guidelines following *Booker* and the broad discretion granted by the federal sentencing statute means that judges who favor considering mitigation could do so, skirting the Guidelines' directives. With recent amendments to the Guidelines, that landscape is changing, allowing judges greater discretion and throwing this area of law into flux.

Against this backdrop, federal judges seem to be choosing to exercise discretion and consider mitigation. Increased presentations of mitigation about the background characteristics of defendants powerfully predict reduced sentences. And critically, they seem to do so in a relatively equal way. For the most part, mitigation is (roughly) equally powerful regardless of the defendant's race or the judge's political background. Mitigation,

The Indispensable Role of the Mitigation Specialist in a Capital Case: A View from the Federal Bench, 36 HOFSTRA L. REV. 819, 826–27 (2008).

342. See Barrett, Draper & Gannett, *supra* note 341, at 746.

343. *Id.* at 747; see also Berrigan, *supra* note 341, at 824.

344. See, e.g., A.B.A., GUIDELINES FOR THE APPOINTMENT AND PERFORMANCE OF DEFENSE COUNSEL IN DEATH PENALTY CASES 914, 925 (2003), https://www.americanbar.org/content/dam/aba/administrative/death_penalty_representation/2003guidelines.pdf [<https://perma.cc/9VN7-WMDW>] (stating that, in death penalty cases, “[c]ounsel must promptly obtain the investigative resources necessary to prepare for both phases, including at minimum the assistance of a professional investigator and a mitigation specialist, as well as all professional expertise appropriate to the case”).

345. See Meixner, *supra* note 31, at 1465–66.

346. *Id.* at 1466.

unlike most aspects of criminal procedure, seems to be a rising tide that lifts all boats.

But it could be so much more. In the current system, judges are left to decide how mitigation applies without any real guideposts as to how to do so—the very sort of lawlessness at sentencing that the Guidelines were designed to confront. And mitigation is limited in more practical ways too: physical barriers likely keep detained defendants from benefitting from it, and resource constraints keep attorneys from fully learning how to use it. It is time, in my view, to address these problems head on. We need to start taking mitigation seriously by prioritizing it, offering trainings on how to use it, and setting out standards for its appropriate consideration by judges. Only by doing so can we make a justice system that truly considers the human elements behind every case.